



Agriculture Act 1967

1967 CHAPTER 22

An Act to establish a Meat and Livestock Commission and make other provision for the livestock and livestock products industries, to amend the Agriculture (Calf Subsidies) Act 1952 and make new provision with respect to the supervision and enforcement of schemes under that Act, to authorise the payment of subsidies in respect of cows maintained for the purpose of breeding calves for beef, to authorise grants for improvements of agricultural land and in respect of expenditure on equipment, plant and machinery for use in agriculture, and on certain vehicles, and supplementary grants in respect of certain expenditure, and to make provision with respect to the shape and size of farms and related matters, agriculture and forestry on hill land, co-operative activities in agriculture, diseases of animals and other matters connected with agriculture.

[10th May 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

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LIVESTOCK AND MEAT MARKETING

The Meat and Livestock Commission

1.—(1) There shall be established a body to be called the ^{The Meat} Meat and Livestock Commission (in this Part of this Act and Livestock referred to as “the Commission”) having the general duty of ^{Commission.} promoting greater efficiency in the livestock industry and the livestock products industry, and the particular functions specified in Part I of Schedule 1 to this Act, as well as the other functions conferred by this Part of this Act.

(2) In carrying out their functions the Commission shall have regard to the interests of consumers as well as to the

PART I interests of the various sections of the livestock industry and the livestock products industry.

(3) The Commission shall consist of not more than ten members appointed by the Ministers, and the Ministers shall appoint persons who in the Ministers' opinion are qualified to serve on the Commission by reason of their financial, commercial, technical, scientific, administrative or other relevant experience, and have no such financial or commercial interest as would be likely to prejudice the proper discharge of their functions as members.

(4) The Commission shall have a chairman and deputy chairman appointed by the Ministers from among the members of the Commission.

(5) The Minister of Agriculture, Fisheries and Food shall—

(a) pay to the members of the Commission out of money provided by Parliament such remuneration and such travelling or other allowances as the Ministers, with the approval of the Treasury, may determine, and

(b) in the case of any member of the Commission to whom the Ministers, with the approval of the Treasury, determine that this paragraph applies, pay out of money provided by Parliament such pension, or make such payments out of money provided by Parliament toward the provision of a pension, to or in respect of him as the Ministers and the Treasury may determine in his case,

and if a person ceases to be a member of the Commission and it appears to the Ministers that there are special circumstances which make it right that that person should receive compensation, the Minister of Agriculture, Fisheries and Food may, with the approval of the Treasury, pay to that person out of money provided by Parliament a sum of such amount as the Ministers may with the approval of the Treasury determine.

(6) Nothing in this Part of this Act shall be construed as authorising the Commission to engage in the business of buying and selling livestock or livestock products, except so far as is reasonably necessary for, and incidental to, the discharge of other functions of the Commission.

(7) Part II of Schedule 1 to this Act shall have effect with respect to the Commission.

The
Commission's
committees.

2.—(1) The Ministers shall appoint three committees to be called—

- (a) the Production Committee,
- (b) the Distribution Committee, and
- (c) the Consumers Committee.

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(2) If it appears to the Commission that any matter arising or likely to arise out of the exercise of the Commission's functions has or is likely to have a substantial effect on the interests of persons engaged in the production of livestock, the Commission shall, subject to the following provisions of this section, consult the Production Committee.

(3) If it appears to the Commission that any such matter has or is likely to have a substantial effect on the interests of persons engaged in the marketing or distribution of livestock or livestock products, the Commission shall, subject to the following provisions of this section, consult the Distribution Committee.

(4) If it appears to the Commission that any such matter has or is likely to have a substantial effect on the interests of consumers, the Commission shall consult the Consumers Committee.

(5) Any of the three Committees mentioned in subsection (1) above may at any time submit proposals for the consideration of the Commission as to the manner in which any of the Commission's functions which are of concern to the Committee should be exercised, or make representations to the Commission on any matter which in their opinion has or is likely to have a substantial effect on the interests with which the Committee are concerned.

(6) The Commission shall have power to employ in an executive as well as in an advisory capacity any of the said three committees.

(7) The foregoing provisions of this section shall not be taken as preventing the Commission from setting up any other committees, including, subject to Part III of Schedule 1 to this Act, committees (in this Part of this Act referred to as "joint committees") whose members include one or more members both of the Production Committee and of the Distribution Committee; and the Commission may employ any of their committees in an executive as well as in an advisory capacity.

(8) If the matter on which consultation is required under subsection (2) or subsection (3) of this section is one with which a joint committee is concerned, the Commission may consult that joint committee instead of the Production Committee or, as the case may be, the Distribution Committee.

(9) When giving advice to the Commission, any of the said three committees or any other of the Commission's committees shall, where any of their members desires to give advice differing to any considerable extent from the advice of the majority, inform the Commission of that fact, giving particulars of that differing advice.

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(10) Part III of Schedule 1 to this Act shall have effect as respects the Commission's committees.

Commission's
duties in
connection
with fatstock
guaranteed
prices and
calf subsidies.
1957 c. 57.
1952 c. 62.

3.—(1) It shall be the duty of the Commission to carry out such functions as the Ministers may confer on the Commission in connection with—

(a) any arrangements in force by virtue of an order under section 1 or section 5 of the Agriculture Act 1957 for providing guaranteed prices for fatstock, or

(b) any scheme or order under the Agriculture (Calf Subsidies) Act 1952 as extended by this Act,

but not including any functions conferred on the Ministers or either of them by or under an Act of Parliament other than functions which the Ministers may delegate under section 9(4) of the Agriculture Act 1957 or any other enactment.

(2) So far as relates to livestock or livestock products, in section 5(1)(d) of the Agriculture Act 1957 (power of entry in connection with guaranteed prices), and in any order made under that paragraph before the coming into force of this section, references to authorised officers of the Minister shall include references to authorised officers of the Commission where accompanying an authorised officer of the Minister.

(3) Any relevant information obtained by either of the Ministers in the discharge of their functions in connection with—

(a) any arrangements in force by virtue of an order under section 1 or section 5 of the Agriculture Act 1957 for providing guaranteed prices for fatstock, or

(b) any scheme or order under the Agriculture (Calf Subsidies) Act 1952 as extended by this Act,

may, for the purpose of assisting the Commission in the performance of their functions under this section, be disclosed to the Commission; and any such disclosure shall not be treated as a breach of contract, trust or confidence.

Commission's
functions in
connection
with Markets
and Fairs
(Weighing of
Cattle) Acts.
1887 c. 27.
1926 c. 21.
1891 c. 70.

4.—(1) The Ministers, or either of them, may from time to time delegate to the Commission any powers exercisable by the delegating Ministers or Minister to make orders under—

(a) section 9 of the Markets and Fairs (Weighing of Cattle) Act 1887 as amended by section 2 of the Markets and Fairs (Weighing of Cattle) Act 1926 (order exempting from obligation to provide facilities for weighing cattle),

(b) section 2 of the Markets and Fairs (Weighing of Cattle) Act 1891 (order exempting a market authority from obligation to provide and maintain accommodation for weighing cattle),

- (c) section 4 of the Markets and Fairs (Weighing of Cattle) Act 1891 (order exempting auctioneers from requirements relating to facilities for weighing cattle), PART I
1891 c. 70.
- (d) section 1(4) of the Markets and Fairs (Weighing of Cattle) Act 1926 (order exempting auctioneers from certain requirements relating to weighing of cattle), 1926 c. 21.
- (e) section 56(2) of the Food and Drugs Act 1955 (order exempting market authorities from requirements relating to weighing machines for cattle). 1955 c. 16.

(2) An order under the said section 56(2) of the Food and Drugs Act 1955 shall not be made by statutory instrument.

(3) Where any power delegated to the Commission under this section includes power to vary or revoke orders previously made under that power, the Commission may vary or revoke any such order notwithstanding that it was made by the delegating Ministers or Minister.

5.—(1) For the purpose of providing a standard method of describing as fully as practicable those characteristics of a carcase which are the principal features of interest to persons trading in livestock and carcases, the Commission shall, as soon as practicable, compile systems for the descriptive classification of the carcases of all types of livestock slaughtered in Great Britain and for marking carcases according to that classification. Systems for
classification
of carcases.

(2) For the said purpose the Commission may at any time compile systems for the descriptive classification and marking of imported carcases, or modify any system, so far as inappropriate for imported carcases, so as to make it applicable to all or any imported carcases.

(3) The systems shall be operated by the Commission, and they shall take such steps as appear to them appropriate—

- (a) for bringing to the notice of those particularly concerned particulars of any system compiled by them, and
- (b) with a view to developing the system, for inviting any person to enter into arrangements with the Commission for the Commission to operate the system on his behalf.

(4) If at any time the Commission are satisfied—

- (a) that a system compiled under this section is practicable, and
- (b) that they have obtained sufficient experience of the operation of the system, and
- (c) that they have the resources and facilities required to operate the system,

PART I they shall submit particulars of the system to the Ministers with the view to the making of an order under the next following section.

Compulsory
use of systems
of classification
of carcasses.

6.—(1) The Ministers may, on the recommendation of the Commission, by order make provision for requiring that carcasses of such description as may be specified in the order shall be marked by the Commission in such circumstances and in such manner as may be prescribed by the order and in accordance with the system to which the recommendation relates.

(2) The order may specify the carcasses to which it is to apply by reference to the type of livestock, and the type of carcasses, may distinguish between imported carcasses and carcasses of livestock slaughtered in Great Britain, and may make other distinctions for different cases, and shall be subject to such exceptions or exemptions as may be made by or under the order.

(3) An order under this section—

- (a) may impose duties and restrictions on any persons, and in particular on persons having the control and management of slaughterhouses, for the purposes of enabling the Commission to operate the system,
- (b) without prejudice to paragraph (a) above, may restrict the cutting and other operations which may be carried out on carcasses before they are marked, and prohibit their removal from the place of slaughter or importation before being marked,
- (c) may require persons responsible for premises where a system is operated in accordance with this section, and persons subsequently dealing with carcasses required to be marked in accordance with this section, to keep records relating to their dealings in such carcasses,
- (d) may authorise the Ministers to give directions to the Commission as to the manner in which the system is to be operated,
- (e) may make provision for any incidental or supplemental matters for which provision appears to the Ministers to be necessary or expedient.

(4) If any person contravenes or fails to comply with any provision of an order under this section he shall be liable on summary conviction to a fine not exceeding one hundred pounds or imprisonment for a term not exceeding three months or both:

Provided that if in proceedings against any person for an offence under this subsection it is proved—

- (a) that the commission of the offence was due to an act or default of some other person, and

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- (b) that the person charged took all reasonable precautions and exercised all due diligence to avoid the commission of the offence by him or any person under his control,

then, subject to the next following subsection, the person charged shall be acquitted of the offence.

(5) A person charged with an offence under the last foregoing subsection shall not be entitled to be acquitted by virtue of the proviso thereto unless, not less than fourteen clear days before the hearing, he has given notice in writing to the prosecutor of his intention to rely on that proviso, specifying the name and address of the person to whose act or default he alleges the commission of the offence was due, and has sent a like notice to that person; and that person shall be entitled to appear at the hearing and to give evidence.

This subsection shall not apply to Scotland.

(6) Where the commission by any person of an offence under subsection (4) above is due to an act or default of some other person, that other person shall be guilty of the offence; and a person may be charged with and convicted of the offence by virtue of this subsection whether or not proceedings are taken against the first-mentioned person.

(7) If any person wilfully obstructs an authorised officer of the Commission or other person in the performance of his duty in connection with the operation of a system in pursuance of an order under this section he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(8) If any person—

- (a) with intent to deceive, removes, alters, conceals or defaces any mark applied in the course of the operation by the Commission of a system compiled under the last foregoing section (whether or not operated in pursuance of an order under this section), or
- (b) applies to any carcase, without due authority and with intent to deceive, any mark prescribed by a system so compiled and operated, or applies to any carcase a mark so closely resembling a prescribed mark as to be calculated to deceive, or
- (c) wilfully makes a false entry in any record which is required to be kept in pursuance of an order under this section or, with intent to deceive, makes use of any such entry which he knows to be false,

he shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or both, or on conviction on indictment to a

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fine or to imprisonment for a term not exceeding two years or both.

(9) For the purpose of ascertaining whether an offence has been committed under this section an authorised officer of the Commission may, on producing if so required a duly authenticated document showing his authority, require a person carrying on or managing a slaughterhouse or other undertaking for the slaughter of livestock, or an undertaking for the storage, processing, grading, classification, packing or cutting of carcasses, or for the sale of carcasses by wholesale, to produce any books, accounts or records relating to the conduct of the undertaking which the officer may require to inspect, and may take a copy or extract from any such book, account or record produced to him.

If a person fails to comply with a requirement under this subsection he shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or both.

(10) An order under this section shall be made by statutory instrument and may be varied or revoked by a subsequent order under this section.

(11) No order shall be made under this section unless a draft of the order has been laid before and approved by a resolution of each House of Parliament; and an order terminating provision made under this section for the operation of a system shall not require the recommendation of the Commission under subsection (1) above.

Systems of
classifying
meat, and
codes of
practice for
butchers.

7.—(1) With a view to assisting persons buying meat by retail the Commission may compile—

- (a) systems of classifying meat and of marking and labelling it in accordance with the classification, and
- (b) standard codes of practice for the way in which meat is cut for sale by retail and for the way in which the cuts of meat are described,

and may take such steps as appear to them appropriate to encourage the use of the systems of classification and standard codes in all retail meat undertakings.

(2) The Commission may operate any system compiled by them under this section.

(3) References in this section to labelling meat include references to labelling it by means of any mark, label, tag or ticket made on, attached to or displayed with the meat, and, without prejudice to the construction of the expression “label” in section 6 of the Food and Drugs Act 1955 or in section 6 of the Food and Drugs (Scotland) Act 1956 or elsewhere, that expression in section 6 of the said Acts shall include any such mark, label, tag or ticket.

8.—(1) The Commission may submit to the Ministers PART I
schemes for requiring information to be given in retail meat Information
undertakings as to the prices asked for meat and for regulating as to retail
the way in which that information is given. meat prices.

(2) A scheme under this section may in particular—

- (a)** require information to be given by the display of price lists and, in the case of meat exposed for sale, by the use of prices attached to or displayed with the meat,
- (b)** require the information to be given, in the case of meat exposed for sale, both by showing the prices of particular pieces of meat and also by showing the weight of particular pieces of meat and the price per pound weight,
- (c)** regulate the way in which meat is described in price lists and the language used for description,
- (d)** contain provisions to ensure that information about prices is not given in a misleading way, is conveniently presented and is accessible.

(3) A scheme made under this section may be varied or revoked by a subsequent scheme so made, and may contain such supplemental and incidental provisions as appear to the Commission to be expedient, including in particular provisions—

- (a)** conferring such exemptions from the requirements of the scheme as may be specified by or under the scheme,
- (b)** conferring powers of entry on officers of local weights and measures authorities appointed, or deemed to have been appointed, under section 41 of the Weights and Measures Act 1963, 1963 c. 31.
- (c)** in the case of a scheme varying or revoking a previous scheme, for any transitional matters.

(4) A scheme under this section may include provisions making persons guilty of an offence against the scheme and, in particular, may make a person guilty of an offence against a scheme if he demands or accepts for any meat a price in excess of one displayed in connection with it.

(5) A person guilty of an offence against a scheme under this section shall be liable on summary conviction to a fine not exceeding twenty-five pounds.

(6) If the Ministers are satisfied that the bringing into force of a scheme submitted to them under this section is desirable they may confirm the scheme by order made by statutory instrument, subject to annulment in pursuance of a resolution of either House of Parliament.

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(7) The Ministers may by order revoke a scheme under this section if it appears to them, after consultation with the Commission, that the scheme is not serving the purposes for which it was made, or that the continued operation of the scheme would be contrary to the public interest.

An order under this subsection—

- (a) may contain such supplemental and incidental provisions, including transitional provisions, as appear to the Ministers to be expedient, and
- (b) shall be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

Powers to meet future developments in livestock and livestock products industries.

9.—(1) With a view to enabling the livestock industry and the livestock products industry to carry out such changes as the Commission may consider to be necessary or expedient, the Commission may submit to the Ministers a scheme (in this section referred to as a “development scheme”) for the purpose of conducing to the better organisation, development or regulation of any section of the livestock industry or the livestock products industry.

(2) A development scheme may make provision for the rationalisation or concentration of a section of either industry, including in particular—

- (a) provisions compelling or encouraging the elimination of excess capacity,
- (b) provisions compelling or encouraging a reduction in the number of undertakings engaged, and
- (c) provisions requiring permission to be given for the setting up of a new undertaking or the relocation of an existing undertaking.

(3) A development scheme shall provide—

- (a) that the compensation payable under the development scheme in respect of loss or damage sustained in consequence of the provisions of the scheme shall be payable either out of funds provided by the industry, or a section of the industry, or by the Commission, or partly by one of those means and partly by another, and
- (b) for questions of disputed compensation so payable to be determined otherwise than by the Commission.

(4) A development scheme may be made for the purpose of providing facilities or services for a section of either industry, whether free of charge or not, and may provide for the expenses

of providing the facilities or services to be met either out of funds provided by the industry, or a section of the industry, or by the Commission, or partly by one of those means and partly by another.

(5) A development scheme—

(a) may be made for Great Britain or for England and Wales or for Scotland, or for one or more areas within England and Wales, or Scotland,

(b) may be by way of an experimental or pilot scheme restricted to a specified area or specified undertakings or specified persons.

(6) The methods employed by a development scheme may include the licensing of undertakings or producers, the imposition of quotas on undertakings or producers or markets, and the registration of any category of undertakings or persons.

(7) A development scheme shall have effect notwithstanding any provision inconsistent with the scheme which is contained in any Charter or letters patent, or is contained in or made under any Act of Parliament (including a local Act) passed before this Act or any local Act passed with or after this Act.

(8) A development scheme may be varied or revoked by a subsequent development scheme and may contain such supplemental and incidental provisions as appear to the Commission to be expedient, including in particular provisions—

(a) conferring functions on the Commission,

(b) with respect to the funds to be paid by either industry, or a section of either industry, for the purposes of the scheme, including provisions authorising the Commission to obtain the funds by means of a levy scheme or provisions applying, with any necessary modifications, so much of this Part of this Act as relates to levy schemes,

(c) requiring the keeping of books, accounts and records,

(d) conferring powers of requiring the production of books, accounts or records and powers of entry on officers of the Commission and other persons authorised by the Commission to exercise those powers,

(e) conferring such exemptions from the requirements of the scheme as may be specified by or under the scheme,

(f) authorising the Commission to delegate any functions conferred on them by the scheme,

(g) in the case of a scheme varying or revoking a previous scheme, for any transitional matters.

(9) The generality of the provisions of subsection (1) of this section is not to be read as qualified by or restricted to the particular matters mentioned above in this section.

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(10) A development scheme may include provisions making persons guilty of an offence where there is a contravention of the scheme, and for the imposition of penalties on summary conviction of any such offence, so however that a maximum fine specified in the scheme shall be a sum not exceeding one hundred pounds and a maximum term of imprisonment specified in the scheme shall be a term not exceeding three months.

1956 c. 68.

(11) The Ministers may, after consultation with the President of the Board of Trade, direct that any agreement or class of agreements specified in the direction, being agreements into which the Commission enter in connection with a development scheme, shall be ones to which Part I of the Restrictive Trade Practices Act 1956 does not apply.

This subsection extends to Northern Ireland.

(12) Schedule 2 to this Act shall have effect as respects the procedure for making a development scheme, and other matters concerning development schemes.

Calf subsidies

Calf
subsidy
schemes.
1952 c. 62.

10.—(1) A scheme under the Agriculture (Calf Subsidies) Act 1952 (subsidies in respect of calves born in the United Kingdom) may provide for the time when subsidy becomes payable in respect of a calf, the times by reference to which eligibility for a subsidy, or the rate of subsidy, is to be determined, or any other time relevant for the purposes of the scheme, to be times when the animal has ceased to be a calf, or when the animal whether still a calf or not is dead; and accordingly—

- (a) references in that Act to calves shall where the context admits include references to cattle or carcases, and
- (b) section 1(1)(c) of that Act (under which the scheme must prescribe the limits of age for a calf eligible for subsidy) shall cease to have effect but without prejudice to the power to prescribe such a limit.

(2) The period to be specified in a scheme under the said Act (which, under section 1(3) of that Act, must not exceed three years) shall either—

- (a) be one within which the date of birth must fall, or
- (b) in such cases as the appropriate Minister may determine and in particular in cases where, at the time when eligibility for a subsidy is to be determined, the animal's date of birth cannot be satisfactorily ascertained from an inspection of the animal or carcase, be one within which must fall the date of certification, or the date when subsidy becomes payable, or any other date relevant for the purposes of the scheme;

and accordingly in section 1(1)(a) of the said Act the words "within the period specified in the scheme" shall cease to have effect.

(3) If under the last foregoing subsection periods are specified in different ways, the periods need not be concurrent.

(4) Section 1(5)(b) of the said Act (under which a scheme must not be varied so as to exclude or reduce subsidy in respect of a calf born before the coming into operation of the varying scheme) shall only apply so far as any variation is of the provisions under which subsidy is restricted to animals certified when still calves.

(5) Without prejudice to the generality of the foregoing provisions of this section, the provisions of a scheme under the said Act may be such as to make it possible for the administration of the scheme to be combined with the administration of arrangements for payments to be made in respect of fatstock under Part I of the Agriculture Act 1957 (guaranteed prices); 1957 c. 57. and such a scheme may frame the description of animals or carcasses in respect of which subsidy is payable by reference to the descriptions of animals or carcasses (whether prescribed by or under an order made under the said Part I) which for the time being govern eligibility for payments under the said Part I.

(6) In cases where subsidy is not restricted to animals certified when still calves, the appropriate Minister may, if he thinks fit, provide in the scheme that the rate of subsidy shall, instead of being specified in the scheme, be such amount as the appropriate Minister may with the approval of the Treasury determine as being approximately equivalent on the average to the rate of subsidy which would be payable if the case were one where subsidy is restricted to animals certified when still calves.

(7) A scheme under the said Act may provide for the delegation by the appropriate Minister of any functions conferred on him by the scheme.

(8) This and the next following section extend to Northern Ireland.

11.—(1) For the purpose of securing that payments under the Agriculture (Calf Subsidies) Act 1952 are made in proper cases only, the appropriate Minister may by order make provision—

(a) for requiring that cattle or carcasses shall be marked in such circumstances, in such manner, and by or under the supervision of such persons, as may be prescribed by or under the order,

(b) for prohibiting the removal from slaughterhouses or other premises where cattle or carcasses are required to be marked in pursuance of the order of any cattle

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or carcasses to which the order applies which have not been so marked,

- (c) for enabling authorised officers of the appropriate Minister or of the Ministry of Agriculture for Northern Ireland, and authorised officers of the Commission where accompanying an authorised officer of the appropriate Minister, to enter on land used for the production, keeping, slaughter, grading or sale of cattle, or for the storage, grading, packing or sale of carcasses, and to inspect any cattle or carcasses found upon land so used,
- (d) for requiring the production by producers, dealers, persons owning or controlling slaughterhouses, auctioneers and other persons of books, accounts or records relating to the purchase, sale or use of cattle or carcasses,
- (e) for any other matters for which provision appears to the appropriate Minister to be necessary or expedient for the purposes described in this subsection.

1957 c. 57.

(2) In section 6(1) of the Agriculture Act 1957 (under which imported livestock may be marked, and the importation of livestock controlled, for purposes which include that of securing that payments under Part I of that Act are made in proper cases only) the reference to the purposes there mentioned shall include a reference to the purpose of securing that payments under the Agriculture (Calf Subsidies) Act 1952 are made in proper cases only.

1952 c. 62.

(3) Section 7 of the Agriculture Act 1957 (which imposes penalties in relation to the provisions of section 5 of that Act, being provisions which correspond to subsection (1) of this section) shall apply in relation to an order under subsection (1) of this section as it applies in relation to an order under the said section 5.

(4) An order made under subsection (1) of this section—

- (a) may provide for the delegation by the appropriate Minister of any functions conferred or imposed on him by the order,
- (b) may be varied or revoked by a subsequent order so made, and
- (c) shall be made by statutory instrument.

(5) A statutory instrument containing an order under subsection (1) of this section shall be laid before Parliament after being made, and shall cease to have effect (without prejudice to anything previously done thereunder or to the making of a new order) on the expiration of a period of forty days, calculated in accordance with section 7(1) of the Statutory Instruments

1946 c. 36.

Act 1946, beginning with the day on which it is made unless within that period it has been approved by resolution of each House of Parliament.

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(6) As from such date as may be specified in an order in a statutory instrument made by the appropriate Minister, so much of section 1(4)(c) of the Agriculture (Calf Subsidies) Act 1952 c. 62, 1952 as relates to the marking of calves, and sections 2 and 3 of that Act (which are superseded by the provisions of subsections (1) and (2) of this section) shall cease to have effect, and orders under subsection (1) of this section, and under section 6 of the Agriculture Act 1957 as extended by subsection 1957 c. 57. (2) of this section, may contain such supplemental and incidental provisions as appear to the appropriate Minister expedient for effecting the transition from the provisions so repealed.

(7) An order under this section may be made for England and Wales, for Scotland, for Northern Ireland, or for any two or all of those parts of the United Kingdom jointly.

(8) In this and the last foregoing section "carcasses" means carcasses of cattle.

Beef Cow subsidies

12.—(1) The appropriate Minister may, in accordance with a scheme made by him with the approval of the Treasury, make out of money provided by Parliament payments in respect of cows, or cows of prescribed descriptions, which on any prescribed date are comprised in a herd with respect to which any prescribed conditions are fulfilled, being a herd appearing to the appropriate Minister to be maintained primarily for the purpose of breeding calves for beef.

New provision
for payment of
beef cow
subsidies.

In this section "cow" means a female bovine animal which has borne a calf, or has, in the opinion of the appropriate Minister, been brought into a herd to replace one which has borne a calf, and "prescribed" means prescribed by a scheme under this section; and the payments for which provision is made by any such scheme are in this section referred to as "subsidy payments".

(2) A scheme under this section may be made for England and Wales, for Scotland, for Northern Ireland, or for any two or all of those parts of the United Kingdom jointly.

(3) The duration of a scheme under this section shall be a period not exceeding five years.

(4) The amount which may be paid by way of subsidy payment in respect of a cow shall be such as may be specified by an order made for the purposes of the scheme in question by the appropriate Minister with the approval of the Treasury, and any such order may specify different amounts in relation to different descriptions of cows.

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1946 c. 73.

(5) A scheme under this section shall contain provision designed to secure that subsidy payments and payments under hill cattle schemes within the meaning of the Hill Farming Act 1946 are not made in respect of the same animals for the same, or substantially similar, periods.

(6) A scheme under this section—

- (a) may make provision as to the persons to whom subsidy payments may be made, and for securing that no such payment shall be made unless it is applied for at such time and in such manner as the appropriate Minister may direct ;
- (b) may determine the minimum number of cows in respect of which subsidy payments may be made to any person ;
- (c) may specify the manner in which the number of cows in respect of which subsidy payments may be so made is to be computed ;
- (d) may provide for the number of cows in respect of which subsidy payments would otherwise fall to be so made to be reduced, in any prescribed circumstances, to an extent specified in or determined under the scheme ;
- (e) may provide for subsidy payments to be withheld in any prescribed circumstances, or for the amount of any such payment to be reduced in any such circumstances to an extent specified in or determined under the scheme ;
- (f) may authorise the making of subsidy payments subject to such conditions as the appropriate Minister may think fit to impose ; and
- (g) may contain provisions generally for securing that subsidy payments are properly made, and such incidental and supplementary provisions as appear to the appropriate Minister to be requisite or expedient for the purposes of the scheme.

(7) A scheme or order under this section—

- (a) may be varied (but not, in the case of a scheme, so as to extend its duration) or revoked by a subsequent scheme or order thereunder ; and
- (b) shall be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

(8) This section extends to Northern Ireland.

Financial

PART I

13.—(1) The Commission may submit to the Ministers a scheme (in this Part of this Act referred to as a “levy scheme”) for the imposition of charges for enabling the Commission to meet their expenses (including any sums to be paid into their reserve fund) so far as not met in any other way, and for the recovery of such charges by the Commission in such manner and from such persons as may be specified in the scheme.

Levy on industries to meet Commission's expenses.

(2) A levy scheme shall specify the classes or descriptions of persons on whom or from whom charges may be imposed or recovered, but a class or description so specified shall include only persons who are within the following provisions of this subsection, that is—

- (a) persons engaged in the production, marketing or distribution of livestock, or
- (b) persons engaged in the production, processing, manufacture, marketing or distribution of livestock products, or
- (c) persons (including local authorities) having the control and management of slaughterhouses in which livestock are slaughtered,

including auctioneers, market authorities and other persons concerned with the marketing of livestock and livestock products otherwise than as buyers and sellers, and a levy scheme may contain provisions as to the evidence by which a person's liability to the levy may be established.

(3) A levy scheme shall specify maximum charges leviable under the scheme, and the circumstances under which they are leviable, and shall authorise the Commission, subject to those maximum charges, to levy such amounts as they think fit, or to suspend the levy authorised by the scheme for any period.

(4) The maximum charges so specified—

- (a) may be prescribed by reference to the number, quantity or type of the livestock or livestock products dealt with by the persons chargeable and, in the case of livestock, in particular by reference to the number of livestock slaughtered or exported by those persons, and
- (b) may differ according to the weight, quality or value of the livestock or livestock products.

(5) A levy scheme which provides for the imposition of charges in respect of the slaughter of livestock shall secure that no charges are made in respect of livestock slaughtered under the Diseases of Animals Act 1950 or any order or arrangements made thereunder. 1950 c. 36.

PART I

(6) A levy scheme may authorise persons of a class or description specified in the scheme, and in particular persons owning or controlling slaughterhouses, auctioneers, market authorities and other persons acting as intermediaries in the buying and selling of livestock and livestock products, to recover all or a specified part of sums paid by them under the levy scheme from persons of such other classes or descriptions as may be specified in the scheme, and may, in default of payment by any person of one of the first mentioned class or description, authorise the Commission to recover directly what might have been payable indirectly if the default had not occurred.

(7) A levy scheme may confer on any person on whom such a right of recovery is conferred a further right to make from his payments to the Commission deductions of amounts determined in accordance with the levy scheme in respect of his expenses incurred in exercising his right of recovery, and a right to relief (whether by way of deduction from payments to the Commission or of refund by the Commission) in respect of any sum which, in the opinion of the Commission, ought reasonably to be treated as irrecoverable by him.

(8) The power conferred by this section to make a levy scheme shall be construed as including power to make a levy scheme varying or revoking a previous levy scheme.

(9) If the Ministers are satisfied that the bringing into force of a levy scheme submitted to them is desirable they may confirm the scheme with or without modifications by order made by statutory instrument, but they shall not make such an order unless a draft of the order has been laid before and approved by a resolution of each House of Parliament.

(10) A levy scheme shall come into force on such date as may be specified in the order confirming the scheme, being a date after the latest date on which either House of Parliament resolves that the draft order be approved.

(11) The Ministers may by order in a statutory instrument, of which a draft has been laid before and approved by resolution of each House of Parliament, revoke a levy scheme.

An order under this section may contain such supplemental and incidental provisions, including transitional provisions, as appear to the Ministers to be expedient.

Levy:
registration,
returns and
records.

14.—(1) A levy scheme may, so far as is necessary for determining the liability of persons to charges thereunder, confer on the Commission power to require persons on whom charges may be imposed by a levy scheme—

(a) to be registered in a register kept for the purpose by the Commission,

PART I

(b) to furnish returns and other information, and to produce for examination on behalf of the Commission, books and other documents in their custody or under their control, and

(c) to keep records and to produce them for examination as aforesaid.

(2) Any person who fails to comply with a requirement made under a levy scheme by virtue of subsection (1) above shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or both.

(3) Any person who—

(a) in furnishing any information for the purposes of a levy scheme, knowingly or recklessly makes a statement which is false in a material particular, or

(b) wilfully makes a false entry in any document which is required to be produced in pursuance of a levy scheme,

shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or both, or on conviction on indictment to a fine or to imprisonment for a term not exceeding two years or both.

15.—(1) The Ministers—

(a) shall out of money provided by Parliament pay to the Commission such sums as the Ministers may with the approval of the Treasury determine towards meeting any expenditure (including an appropriate proportion of overheads and other fixed and general expenses) incurred or to be incurred by the Commission in performing any functions under section 3 or section 4 of this Act, and any other functions carried out at the request of the Ministers or either of them, and

Ministers' contributions to Commission's expenses.

(b) may out of money provided by Parliament make such payments to the Commission towards meeting their initial expenditure (including an appropriate proportion of overheads and other fixed and general expenses) incurred or to be incurred by the Commission in performing any other functions as the Ministers may, with the approval of the Treasury, and after consultation with the Commission, determine.

In paragraph (b) above "initial expenditure", in relation to any activities carried on by the Commission in performing any of the functions within that paragraph, means expenditure incurred or to be incurred in respect of the carrying on of those activities in the first three years in which they are carried on.

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(2) Any payments under subsection (1) above may be made subject to any conditions regulating or restricting the Commission's functions, imposing requirements as to the giving of information and the keeping and inspection of accounts and records, or relating to other matters, which the Ministers may specify; and the Ministers may recover the whole or any part of a contribution which is made subject to a condition, if that condition is not complied with.

(3) The giving of a direction under section 20 of this Act as respects any of the Commission's functions shall not make those functions ones performed at the request of the Ministers for the purposes of subsection (1) above.

Payments for
scientific
research.

16.—(1) For the purpose of providing funds to be applied for the purpose of scientific research which is connected with the livestock industry and the livestock products industry and which is to be carried out by the Agricultural Research Council, the Ministers may by order—

(a) impose charges of amounts specified in the order on any class or description of persons on whom charges could be imposed by a levy scheme, or

(b) require the making of payments by the Commission,
or provide sums partly in the one way and partly in the other.

(2) An order under this section may provide for the imposition and recovery of charges in any way which might be authorised by a levy scheme and—

(a) may set out a scheme containing any provisions which could be included in a levy scheme, or

(b) may extend a levy scheme, with or without an increase in any of the amounts leviable, and with any exceptions and modifications specified in the order, and direct that a part of the proceeds of the levy under the scheme as so extended shall be applied under this section.

(3) An order made under this section—

(a) may provide for the collecting of charges under subsection (1)(a) above by the Commission or by any person or class of persons specified in the order, and may authorise the expenses incurred in collecting the charges, or a proportion of those expenses, to be paid out of the proceeds,

(b) shall specify the account into which the sums to be applied under this section are to be paid and the manner in which sums to be so applied are to be dealt with.

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(c) shall be contained in a statutory instrument, and may be varied or revoked by a subsequent order so made, and the Ministers shall not make an order under this section unless a draft of the order has been laid before and approved by a resolution of each House of Parliament.

17.—(1) It shall be the duty of the Commission to carry out such functions as the Ministers may direct them to perform in connection with the collection of any levy relating in any way to the livestock industry or the livestock products industry and payable by virtue of an Act of Parliament or of any instrument having effect under an Act of Parliament, but the Ministers shall not give a direction as respects any levy payable to a person other than the Ministers without the consent of that other person. Collection of statutory levies by Commission.

(2) A direction under this section may specify the terms on which the Commission is to collect a levy, and may allow the Commission to deduct expenses out of the sums collected by them, and a direction given by virtue of this subsection shall have effect notwithstanding anything in any other Act, or in any instrument having effect under any Act.

18.—(1) The Commission may establish and thereafter maintain a reserve fund for the purposes of their functions under this Act. Commission's reserve fund.

(2) Any moneys for the time being comprised in a reserve fund maintained under this section, and any other moneys of the Commission which are not for the time being required for any other purpose, may be invested in accordance with the next following subsection.

(3) Sections 1, 2, 5, 6, 12 and 13 of the Trustee Investments Act 1961 (which relate to the investment powers of trustees) shall have effect in relation to any such moneys, and in relation to any investments or other property for the time being representing any such moneys, as if they constituted a trust fund and the Commission were the trustees of that trust fund. 1961 c. 62.

19.—(1) The Commission shall prepare and transmit to the Ministers annually a report setting out what has been done in the discharge of their functions under this Act during their financial year last completed, and the Ministers shall lay a copy of the report before each House of Parliament. Commission's annual report and accounts.

(2) The Commission shall keep proper accounts and shall prepare in respect of each financial year of the Commission statements of account in such form as the Ministers, with the approval of the Treasury, may direct; and the accounts of the Commission for each financial year shall be audited by auditors to be appointed by the Commission.

(3) No person shall be qualified to be appointed auditor under the last foregoing subsection unless he is a member (or

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in the case of a firm unless all the partners therein are members) of one or more of the following bodies:—

The Institute of Chartered Accountants in England and Wales;

The Institute of Chartered Accountants of Scotland;

The Association of Certified and Corporate Accountants;

The Institute of Chartered Accountants in Ireland;

Any other body of accountants established in the United Kingdom for the time being recognised for the purposes of section 161(1)(a) of the Companies Act 1948 by the Board of Trade.

1948 c. 38.

(4) As soon as may be after the accounts of the Commission have been audited, the auditors shall transmit to the Ministers copies of the statements of account together with their report thereon, and the Ministers shall lay a copy of the statement and report before each House of Parliament.

Supplemental

Directions to
Commission
by Ministers.

20.—(1) The Ministers, after consultation with the Commission, may give to the Commission such directions of a general character with respect to the performance of any functions of the Commission as appear to the Ministers to be requisite in the public interest.

(2) The Commission's report for any year under section 19(1) above shall set out any direction given by the Ministers under subsection (1) of this section to the Commission during that year, unless the Ministers have notified the Commission their opinion that it is against the interests of national security to do so.

(3) It shall be the duty of the Commission to comply with any directions given by the Ministers under this section.

Inquiries by
Commission.

21.—(1) The Commission may hold such inquiries as they consider necessary or desirable for the discharge of any of their functions.

(2) For the purpose of any inquiry under this section the Commission may by summons require any person to attend to give evidence on any of the matters specified in the summons, or to produce all documents in his possession or control which relate to any such matters.

(3) The summons shall specify the hour and day, being a day not earlier than twenty-one days after the service of the

summons, and the place, at which that person is to attend, and shall refer to the right of appeal conferred by subsection (4) below.

(4) Within fourteen days of service of a summons under this section, the person served may appeal to the High Court on the ground that any of the evidence, or any document, which he may be required to give or produce in pursuance of the summons is not reasonably required by the Commission for the execution of their functions under this Act, and—

- (a) the operation of the summons shall be suspended until the final determination of the appeal, and
- (b) the court may make such order either confirming or quashing or varying the summons as the court thinks fit and, except where the order is quashed, providing if need be for the time and place of attendance under the summons.

(5) The jurisdiction conferred by this section on the High Court may be exercised by a Master, but subject to rules of court and to the rights of appeal from the decisions of a Master thereby conferred, and this subsection shall have effect notwithstanding section 63(1) of the Supreme Court of Judicature 1925 c. 49. (Consolidation) Act 1925 (which requires an appeal from any person to the High Court to be heard and determined by a divisional court).

(6) No person shall be compelled for the purposes of an inquiry under this section to give any evidence or produce any document which he could not be compelled to give or produce in proceedings before the High Court.

(7) No person shall be required, in obedience to a summons under this section, to go more than ten miles from his place of residence unless the necessary expenses of his attendance are paid or tendered to him.

(8) For the purpose of any inquiry under this section the Commission may take evidence on oath and for that purpose administer oaths, or may, instead of administering an oath, require the person examined to make and subscribe a declaration of the truth of the matter respecting which he is examined.

(9) If any person who is to give evidence at any inquiry under this section so requests at the hearing, or by a notice in writing served on the Commission before the day of the hearing, the Commission shall exclude the public from the hearing while that person gives his evidence.

(10) The procedure at any such inquiry shall, subject to the foregoing provisions of this section and any direction under section 20 above, be determined by the Commission, but so that any person appearing thereat shall be entitled to representation by counsel, solicitor or any other person.

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(11) A person who—

- (a) refuses or wilfully neglects to attend in obedience to a summons under this section, or to give evidence as required by such a summons, or
- (b) wilfully alters, suppresses, conceals, destroys or refuses to produce any book or other document which he may be required to produce for the purposes of this section,

shall be liable on summary conviction to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both.

(12) In the application of this section to Scotland—

- (a) for any reference to the High Court there shall be substituted a reference to the sheriff,
- (b) subsection (5) shall not apply, and
- (c) for any reference to a summons there shall be substituted a reference to a notice in writing.

Dissolution of
Pig Industry
Development
Authority.
1957 c. 57

22.—(1) On the date of the coming into force of this section the assets, liabilities and obligations of the Pig Industry Development Authority established under Part III of the Agriculture Act 1957 shall by virtue of this subsection and without further assurance be transferred to the Commission.

(2) The Authority's financial year current on the said date shall be deemed to end on that date.

(3) As soon as the Ministers are satisfied that the requirements of section 28 of the Agriculture Act 1957 (annual report and accounts) have been complied with on the part of the Authority in respect of years down to and including that financial year, they shall by order in a statutory instrument dissolve the Authority, and thereupon any expenses incurred by the Authority in complying with the said section 28 after the said date shall become a liability of the Commission.

Power of
entry.

23.—(1) For the purpose of obtaining information with respect to any matter which is of concern to the Commission, an authorised officer of the Commission, on producing if so required a duly authenticated document showing his authority, shall have a right to enter, at any reasonable time, any premises (other than a building used only as a private dwellinghouse) which he has reasonable cause to believe to be premises used for the slaughter of livestock or for the storage, processing, grading, classification, packing, cutting or sale of meat.

(2) An authorised officer entering any premises by virtue of this section may take with him such other persons as may appear to him necessary.

PART I

(3) A person may on any premises which he enters by virtue of this section inspect any livestock or meat or, if a retail meat undertaking is carried on on the premises, any price lists or price marks, labels, tags or tickets or any other displays of prices of meat for sale.

(4) If any person wilfully obstructs an authorised officer or other person in the exercise of powers conferred on him by this section he shall be liable on summary conviction to a fine not exceeding twenty pounds.

(5) The foregoing provisions of this section shall apply in relation to a stall or vehicle as they apply in relation to premises, but nothing in this section shall authorise a person to stop any vehicle on a highway.

24.—(1) Returns or other information furnished or obtained by any person in pursuance of a requirement made under a levy scheme, and any other information with respect to any particular undertaking which has been obtained under or by virtue of this Part of this Act, shall not be disclosed except—

Disclosure of information.

- (a) with the consent of the person by whom the information was furnished, or
- (b) to a member, officer or servant of the Commission or to any person exercising functions on behalf of the Commission, or
- (c) to either of the Ministers or to an officer or servant appointed by, or by one of, the Ministers or to any person exercising functions on behalf of the Ministers, or either of them, or
- (d) in the form of a summary of similar returns or information furnished by or obtained from a number of persons, being a summary so framed as not to enable particulars relating to any one person or undertaking to be ascertained from it, or
- (e) for the purpose of any proceedings pursuant to this Part of this Act, or of any criminal proceedings which may be taken, whether pursuant to this Act or otherwise, or for the purpose of a report of any such proceedings.

(2) This section shall not be taken as applying to information obtained at an inquiry under section 21 of this Act, except information derived from evidence given at the inquiry at a time when the public are excluded.

(3) Any person who discloses any information in contravention of this section shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or both, or on conviction on indictment to a fine or to imprisonment for a term not exceeding two years or both.

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(4) This section, except subsections (1)(b) and (2), extends to Northern Ireland.

Interpretation
of Part I.

25.—(1) In this Part of this Act “the Ministers” means the Minister of Agriculture, Fisheries and Food and the Secretary of State concerned with agriculture in Scotland and, in the case of anything falling to be done by the Ministers, means those two Ministers acting jointly, except that payments to the Commission under section 15 of this Act shall be separate payments by the two Ministers in proportions agreed by them with the approval of the Treasury.

(2) In this Part of this Act, unless the context otherwise requires—

“carcases” means whole carcases of livestock, and sides, quarters and other wholesale cuts of carcases;

“the Commission” has the meaning given by section 1 of this Act;

“fatstock” means fat cattle, fat sheep and fat pigs and the carcases of those animals;

“imported” means imported, removed or brought into Great Britain from elsewhere, and cognate expressions shall be construed accordingly;

“joint committee” has the meaning given by section 2(7) of this Act;

“levy scheme” has the meaning given by section 13 of this Act;

“livestock” means cattle, sheep and pigs;

“livestock industry” means all the activities comprised in the production, marketing and distribution of livestock in Great Britain, including the carrying on of slaughterhouses and livestock auctions and markets;

“livestock product” means any product for human consumption which is derived to any substantial extent, with or without any process of manufacture, from livestock, but excluding milk and milk products, so, however, that references to the production or processing or manufacture of livestock products include references to the production or processing or manufacture in slaughterhouses of any inedible products obtained from the slaughter of livestock in slaughterhouses;

“livestock products industry” means the activities comprised in the production, processing, manufacture, marketing and distribution of livestock products in Great Britain, including the carrying on of livestock product auctions and markets;

"meat" means—

PART I

(a) carcase meat and offal obtained from livestock and intended for human consumption, and

(b) bacon and ham ;

"retail meat undertaking" means a business which consists of or includes the selling of meat by retail ;

"slaughterhouse" has, in England and Wales and Northern Ireland, the meaning given by section 135(1) of the Food and Drugs Act 1955 and, in 1955 c. 16. Scotland, the meaning given by section 16 of the Slaughterhouses Act 1954. 1954 c. 42.

(3) Any reference in this Part of this Act to a person having the control and management of a slaughterhouse includes a reference to a local authority providing slaughterhouse facilities under Part II of the Slaughterhouses Act 1954 or Part IV of the Food and Drugs Act 1955, or providing any similar facilities under any local enactment.

(4) Subsections (1), (2) and (3) of section 107 of the Agriculture 1947 c. 48. Act 1947 or, as the case may be, subsections (1), (2) and (3) of section 83 of the Agriculture (Scotland) Act 1948 (manner of 1948 c. 45. service of notice) shall apply to documents required or authorised to be served under this Part of this Act.

PART II

FARM STRUCTURE AND FARM IMPROVEMENTS, AND PROMOTION OF AGRICULTURAL INVESTMENT

Farm Structure

26.—(1) The appropriate Minister may in accordance with Grants for a scheme make grants out of money provided by Parliament amalgamations and boundary towards expenditure incurred in connection with the carrying out— adjustments.

(a) of transactions for securing that agricultural land which is an uncommercial unit, but which together with some other agricultural land could form an intermediate unit or commercial unit, shall be owned and occupied with that other land, and

(b) of transactions for securing that, where an intermediate unit or a commercial unit is not all in the same ownership, any part of it comes to be in the same ownership as the rest of that unit, or in the same ownership as some other part of that unit, but excluding transactions which bring into the same ownership and occupation two or more parts of the unit each of which could by itself form a commercial unit, and

PART II

- (c) of transfers or exchanges of agricultural land (or estates or interests in agricultural land) for the purpose of giving more satisfactory boundaries to one or more agricultural units ;

and for the purposes of paragraph (a) above, such assumptions as the appropriate Minister may consider reasonable may be made as to the improvements and works which will be carried out for the benefit of the unit to be formed.

Transactions within paragraphs (a) and (b) above are in this Part of this Act referred to as "amalgamations", and transactions within paragraph (c) are in this Part of this Act referred to as "boundary adjustments".

(2) A scheme under this section may restrict the amalgamations and boundary adjustments to which it applies in any way, and may in particular exclude amalgamations of land which has reverted from being in single ownership or occupation.

(3) The expenditure towards which a grant may be made under this section in connection with an amalgamation or boundary adjustment shall be—

- (a) the costs of the amalgamation or boundary adjustment consisting of surveyor's fees and legal costs, stamp duty on any conveyance, lease, tenancy agreement or mortgage or heritable security, any compensation for disturbance, and the cost of obtaining any requisite consent of the Ministry of Finance for Northern Ireland ;

- (b) in the case of an amalgamation—

(i) the cost of such work of prescribed kinds as in the opinion of the appropriate Minister becomes necessary or expedient as a direct consequence of throwing together the units of land which, prior to the amalgamation, were in separate ownership or occupation, and separating them from land which is not to form part of the resulting unit,

(ii) the cost of such improvements of prescribed kinds as in the opinion of the appropriate Minister are for the benefit of the resulting unit as a whole ;

- (c) in the case of a boundary adjustment, the cost of such work of prescribed kinds as in the opinion of the appropriate Minister becomes necessary or expedient as a direct consequence of the alterations of boundaries.

In this subsection "compensation for disturbance" means compensation for disturbance under—

1948 c. 63.

- (a) section 34 of the Agricultural Holdings Act 1948,

(b) section 35 of the Agricultural Holdings (Scotland) Act 1949, or PART II
1949 c. 75.

(c) section 3 of the Landlord and Tenant (Ireland) Act 1870. 1870 c. 46.

(4) A scheme under this section may make different provision for amalgamations resulting in an intermediate unit and those resulting in a commercial unit; and in particular may restrict grant under subsection (3)(b)(ii) above where the amalgamation results in an intermediate unit to grant in respect of improvements which in the opinion of the appropriate Minister would continue to be of benefit to the land if the intermediate unit subsequently becomes a part of a commercial unit.

(5) The amount of any grant payable under this section towards expenditure shall be one-half of that expenditure so far as approved by the appropriate Minister.

(6) A scheme under this section shall provide for grant in respect of any expenditure being payable by reference to proposals which have been submitted to and approved by the appropriate Minister, and the approval—

(a) may be given before or, in such classes of cases as the appropriate Minister may direct, after the carrying out of the proposals,

(b) may be made subject to such conditions as the appropriate Minister may specify, and in particular subject to any condition as to the time within which the proposals are to be carried out,

(c) may be varied or withdrawn by the appropriate Minister with the applicant's written consent.

(7) After the payment of any grant under this section or subsection (1)(a) of the next following section in connection with an amalgamation the relevant unit shall be subject to the provisions of Schedule 3 to this Act and—

(a) the appropriate Minister shall not approve the proposals for the amalgamation unless satisfied that all persons having an estate or interest in the relevant unit have given their written consent to the application of that Schedule to the relevant unit,

(b) the relevant unit shall be, or be the part of, the agricultural unit or units specified for the purposes of this subsection by the appropriate Minister in the document giving his approval to the proposals, and

(c) in the said Schedule 3 as applied by this subsection "relevant Exchequer payments" shall mean—

(i) the grant in respect of such expenditure as is specified for the purposes of this subsection in that document as being expenditure related to the relevant unit, and

PART II

(ii) such sum as the appropriate Minister may certify as the sum representing his administrative expenses (including an appropriate proportion of overhead expenses and other fixed or general expenses) incurred in connection with making the grant,

and "the relevant date" shall, for any grant and the related administrative expenses, be the date when the grant was paid.

(8) In the case of the payment of any grant under this section in connection with a boundary adjustment the appropriate Minister may, if he thinks fit, designate in the document giving his approval to the proposals any land appearing to him to benefit from the boundary adjustment as land which, after the payment of that grant, is to be a relevant unit subject to the provisions of Schedule 3 to this Act, and paragraphs (a) and (c) of the last foregoing subsection shall apply in relation to the boundary adjustment as they apply in relation to an amalgamation.

(9) The duration of a scheme under this section shall be a period not exceeding seven years, but that period may from time to time be extended by further schemes under this section for periods not exceeding seven years.

1957 c. 57.

(10) A grant shall not be made under section 16 of the Agriculture Act 1957 (which relates to grants towards costs of amalgamation and is superseded by this section) in respect of a transaction proposed in an application made under that section after the coming into force of the first scheme made under this section, and so much of subsection (2) of the said section 16 as limits the time within which applications may be made under that section shall cease to have effect.

(11) The following enactments—

1946 c. 73.

(a) section 6(c) of the Hill Farming Act 1946,

1959 c. 12.

(b) section 5(3) of the Agriculture (Small Farmers) Act 1959, or

1964 c. 28.

(c) section 2(3) of the Agriculture and Horticulture Act 1964,

1948 c. 45.

1955 c. 21.

(under which grant under those Acts may be recovered by the appropriate Minister if there is a failure to carry out proposals), and any provision to the like effect in regulations made under section 77(3) of the Agriculture (Scotland) Act 1948 or section 22(4) of the Crofters (Scotland) Act 1955, shall not apply where in the opinion of the appropriate Minister the carrying out of the proposals is, in consequence of the carrying out of proposals approved under this section, impracticable or to no purpose or unduly expensive.

27.—(1) The appropriate Minister may in accordance with a scheme make a grant by way of a lump sum payment or an annuity to or for the benefit of an individual who in prescribed circumstances relinquishes his occupation of an uncommercial unit of agricultural land—

PART II
Grants for individuals relinquishing occupation of uncommercial units.

- (a) where the relinquishment of all or any part of that uncommercial unit is effected as part of an amalgamation to which a scheme under section 26 of this Act for the time being applies, or
- (b) in accordance with arrangements which the appropriate Minister or, subject to the provisions of Part III of this Act, a Rural Development Board makes with him (whether or not his landlord or any other person is a third party) to enable the appropriate Minister or the Board to dispose of the unit so that it is owned or occupied with other land, or so as to improve the shape of any agricultural units, or
- (c) subject to the provisions of Part III of this Act, in accordance with arrangements approved by a Rural Development Board as being for the purpose of facilitating the afforestation of land in the area of the Board.

(2) A scheme under this section—

- (a) may, subject to any prescribed exceptions, require the individual to have been in occupation of the whole of the uncommercial unit for a prescribed period,
- (b) may exclude an individual who occupied the uncommercial unit under a short-term letting as defined in the scheme,
- (c) may apply to the individual a test by reference to the income (calculated in a prescribed way) derived from the land the occupation of which he relinquishes including, if the scheme so provides, income so derived by the individual's wife or husband or partner or by any other person jointly occupying the land.

(3) A scheme under this section may authorise the making of grant subject to such conditions as the appropriate Minister may specify.

(4) Grants shall not be payable under this section to any one individual in respect of more than one uncommercial unit, and a scheme under this section shall contain provisions for securing that the amount of the grant payable in respect of an uncommercial unit occupied by more than one individual is an amount which is not more than approximately equivalent to the amount which would be payable if it had been occupied by a single individual.

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(5) A scheme under this section may provide that, after the death of a person in receipt of a grant by way of annuity, grant under this section of an amount specified in the scheme may be payable to a surviving widow or widower.

(6) The duration of a scheme under this section shall be a period not exceeding seven years, but that period may be extended from time to time by subsequent schemes under this section for periods not exceeding seven years.

(7) Any grant under this section shall be paid out of money provided by Parliament.

Loans to assist
amalgamations
and boundary
adjustments.

28.—(1) The appropriate Minister may with the approval of the Treasury make or guarantee loans to meet expenditure incurred in connection with the carrying out, in accordance with proposals approved by the appropriate Minister, of any amalgamation or boundary adjustment to which a scheme under section 26 of this Act for the time being applies, being—

- (a) expenditure within subsection (3) of that section, or
- (b) any part of the purchase price of any land acquired as part of the amalgamation or as the case may be any part of the purchase price of land acquired, or of money given by way of equality of exchange, as part of the boundary adjustment,

or expenditure under both paragraphs (a) and (b) above.

(2) A loan made by the appropriate Minister—

- (a) may be effected through the agency of such body or bodies as the appropriate Minister may select,
- (b) must have been approved by the appropriate Minister on an application made in the manner directed by him and within the period of duration of schemes under section 26 of this Act, or within such longer period as the appropriate Minister may determine.

(3) A loan guaranteed by the appropriate Minister shall be a loan made by such body or bodies as the appropriate Minister may select.

(4) A loan made or guaranteed by the appropriate Minister must be one repayable as to both capital and interest within a period of sixty years from the making of the loan.

(5) The appropriate Minister may in making a loan or guarantee under this section impose such conditions as he thinks fit.

(6) After the giving of a loan or guarantee under this section in connection with an amalgamation the relevant unit shall be subject to the provisions of Schedule 3 to this Act and—

- (a) the appropriate Minister shall not approve the proposals for the amalgamation unless satisfied that all persons

PART II

having an estate or interest in the relevant unit have given their written consent to the application of that Schedule to the relevant unit,

- (b) the relevant unit shall be, or be the part of, the agricultural unit or units specified for the purposes of this subsection by the appropriate Minister in the document giving his approval to the proposals, and
- (c) in the said Schedule 3 as applied by this subsection "relevant Exchequer payments" shall mean—

(i) in the case of a loan, the amount of the loan and interest outstanding and, so far as the lender has been required to accept repayment at a time earlier than that agreed in making the loan, the cost, or so much thereof as the appropriate Minister may determine, of reinvestment and, if the rate of interest on the loan is higher than can reasonably be expected to be obtained on reinvestment (regard being had to the current rate of interest) compensation in respect of the loss thereby sustained or such part thereof as the appropriate Minister may determine,

(ii) in the case of a guarantee, any amount paid by the appropriate Minister in fulfilment of the guarantee,

(iii) in either case, such sum as the appropriate Minister may certify as the sum representing his administrative expenses (including an appropriate proportion of overhead expenses and other fixed or general expenses) incurred in connection with making the loan or guarantee and, in the case of a guarantee, in fulfilling the guarantee,

- (d) in the said Schedule 3 as applied by this section "relevant date" shall mean—

(i) for any administrative expenses related to a loan within subsection (6)(c)(i) above, the date when the loan is made,

(ii) for sums within subsection (6)(c)(ii) above, and any related administrative expenses, the date when the guarantee is fulfilled.

(7) In the case of a loan or guarantee made under this section in connection with a boundary adjustment the appropriate Minister may, if he thinks fit, designate in the document giving his approval to the proposals any land appearing to him to benefit from the boundary adjustment as land which, after the making of the loan or guarantee, is to be a relevant unit subject to the provisions of Schedule 3 to this Act, and

PART II paragraphs (a), (c) and (d) of the last foregoing subsection shall apply in relation to the boundary adjustment as they apply in relation to an amalgamation.

(8) A mortgage, heritable security or charge securing a loan made or guaranteed by the appropriate Minister under this section may, notwithstanding any rule of law or equity to the contrary, contain a provision that the mortgage, heritable security or charge shall not be redeemable except in the manner specified in the mortgage, heritable security or charge.

(9) Any sums required by the appropriate Minister for making a loan under this section or fulfilling a guarantee made under this section shall be paid out of money provided by Parliament.

(10) References in this section to the guarantee of a loan include references to the guarantee of part of a loan, including a guarantee restricted to interest payable on a loan.

Promotion of
amalgamations
and boundary
adjustments
by Minister.
1947 c. 48.
1948 c. 45.

29.—(1) It is hereby declared that the appropriate Minister has power under sections 82 and 90 of the Agriculture Act 1947 and sections 55 and 61 of the Agriculture (Scotland) Act 1948 (powers of acquiring land by agreement and managing land) to acquire, hold and dispose of land for the purposes of effecting amalgamations of agricultural land and reshaping agricultural units.

(2) That power shall include in particular power for the said purposes to enter into transactions involving loss, including—

- (a) amalgamating holdings of land in a way which renders less valuable, or useless, any buildings or equipment on any of the land,
- (b) allowing the occupier of an uncommercial unit to retain occupation of a dwelling-house on the land when the remainder of the unit is acquired by the appropriate Minister for the purposes of amalgamation,
- (c) selling land resulting from an amalgamation effected by the appropriate Minister subject to depreciatory conditions imposed for the purpose of ensuring that the land continues to be held in single ownership and single occupation for agricultural purposes.

(3) A deed by which the appropriate Minister conveys land, or an estate or interest in land, may apply Schedule 3 to this Act to any of that land, and to any other land, but only if all the persons who will have an estate or interest in the land to which Schedule 3 is so applied are parties to the deed; and in that Schedule as so applied “relevant Exchequer payments” shall

mean such amounts as are specified in the deed for the purposes of this subsection under the heads of—

PART II

- (a) the incidental costs incurred by the appropriate Minister in acquiring and disposing of the land, estate or interest conveyed by the deed, being costs consisting of surveyor's fees and legal costs, stamp duty on any conveyance, lease, tenancy agreement or mortgage or heritable security, and any compensation for disturbance under section 34 of the Agricultural Holdings 1948 c. 63. Act 1948 or section 35 of the Agricultural Holdings 1949 c. 75. (Scotland) Act 1949,
- (b) any such loss as is described in subsection (2) of this section incurred by the appropriate Minister in dealing with the land, estate or interest so conveyed, including any reduction in the purchase price obtained by him on the transaction effected by the deed in consequence of the depreciatory conditions contained in the deed,
- (c) such sum as the appropriate Minister may certify as the sum representing his administrative expenses (including an appropriate proportion of overhead expenses and other fixed or general expenses) incurred in connection with the transaction to which the deed gives effect,

and "relevant date" means the date on which the transaction to which the deed relates takes effect.

(4) Section 24(1) of the Agricultural Holdings Act 1948 and section 25(1) of the Agricultural Holdings (Scotland) Act 1949 (which restrict the operation of a notice to quit an agricultural holding) shall not apply to a notice to quit given by the appropriate Minister where—

- (a) the appropriate Minister certifies in writing that the notice to quit is given in order to enable him to use or dispose of the land for the purpose of effecting any amalgamation or the reshaping of any agricultural unit, and
- (b) the instrument under which the tenancy was granted contains an acknowledgment signed by the tenant that the tenancy is subject to the provisions of this section.

(5) Where an instrument bearing to grant a tenancy contains such an acknowledgment as is mentioned in paragraph (b) of the last foregoing subsection, the grant of the tenancy shall have effect notwithstanding section 16 of the Crofters (Scotland) Act 1955 c. 21. Act 1955 (vacant crofts), and during the subsistence of the tenancy the provisions of the Crofters (Scotland) Acts 1955 and 1961 and of the Small Landholders (Scotland) Acts 1886 to 1931 shall not apply to any land subject to the tenancy.

PART II

Farm improvements

Grants for long term improvements for the benefit of agricultural land.

30.—(1) With a view to assisting in the making of long term improvements for the benefit of agricultural land the appropriate Minister may make out of money provided by Parliament grants towards the cost of such improvements of a kind described in Schedule 4 to this Act as he may approve for that purpose.

(2) The applicant for the grant may be a person having an interest in the land (being in Scotland an interest as proprietor or as tenant) for the benefit of which the improvement is proposed, or a person intending to acquire such an interest if the improvement is approved, and the applicant may propose more than one improvement in his application.

(3) The appropriate Minister may, as he thinks fit, either refuse to approve a proposed improvement or approve it in whole or in part, and the approval—

(a) may be given before or, in such classes of cases as the appropriate Minister may direct, after the carrying out of the proposals,

(b) may be made subject to such conditions as the appropriate Minister may specify, and in particular subject to any condition as to the time within which the proposals are to be carried out,

(c) may be varied or withdrawn by the appropriate Minister with the applicant's written consent.

(4) The appropriate Minister shall not approve any improvement unless he is satisfied—

(a) that all the land for the benefit of which the improvement is proposed is agricultural land occupied together with buildings and is capable of yielding a sufficient livelihood to an occupier reasonably skilled in husbandry, or will be capable of doing so as a result of the improvement, and

(b) that the cost of the improvement will not be unreasonably high in relation to the benefit in the farming of the agricultural land derived from the improvement, and

(c) that the improvement is such as a prudent owner-occupier would be willing to make, having regard to its cost and to all other circumstances, but disregarding benefits derived from the improvement other than the benefit in the farming of the agricultural land.

(5) The amount of any grant payable under this section towards the cost of an improvement shall be one quarter of that cost so far as approved by the appropriate Minister as having been reasonably incurred.

(6) The appropriate Minister may reduce or withhold a grant under this section in any case where—

- (a) assistance in respect of the improvement is given under any other enactment in this or any other Act, or
- (b) the carrying out of the improvement appears to him to frustrate the purposes served by any expenditure incurred in respect of any other improvement, or incurred on any other occasion, being expenditure in respect of which a grant has been paid out of money provided by Parliament under this section or any other enactment in this or any other Act.

(7) A grant under this section shall be payable to the person or persons by whom or on whose behalf the work required for making the improvement is done, and may be paid on the completion of that work or by instalments on the completion of parts of that work.

(8) A grant shall not be made under section 12 of the Agriculture Act 1957 (which is superseded by the provisions of 1957 c. 57. this section)—

- (a) in respect of an improvement proposed in an application made under that section after 17th November 1965, or
- (b) where none of the work, or only a negligible part of the work, required for making the relevant improvement has been done before the passing of this Act, or before the end of the period of two years beginning with the date on which the proposal for the relevant improvement was approved, whichever is the later,

but, if the appropriate Minister so directs, paragraph (a) above shall not apply in relation to an application which in the opinion of the appropriate Minister is in substitution for an application made on or before the said 17th November 1965 and is in respect of an improvement which serves the same purposes as well as or better than, and not at substantially greater cost than, the improvement to which the earlier application related.

(9) The grants made under this section, with the grants made under the said section 12 and under section 16 of the Agriculture Act 1957 (grants for amalgamations) and any grants made in respect of improvements of a kind to which this section applies out of money provided by Parliament by any Act passed after 27th April 1966 and before the passing of this Act, shall not altogether exceed the sum of one hundred and seventy million pounds.

(10) The Minister of Agriculture, Fisheries and Food and the Secretary of State may from time to time, by order made by

PART II

them jointly by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament, vary Schedule 4 to this Act, but without prejudice to the payment of any grant towards the cost of an improvement approved before the coming into operation of the order.

Promotion of agricultural investment

Grants towards expenditure on fixed equipment, etc., and improvements, for purposes of agricultural businesses.

31.—(1) The appropriate Minister may, out of money provided by Parliament, make to any person a grant towards expenditure incurred by that person on or after 17th January 1966 in or towards—

- (a) providing or installing fixed equipment, fixed plant or fixed machinery for use wholly or partly for the purposes of an agricultural business, or
- (b) replacing, improving or adapting any fixed equipment, fixed plant or fixed machinery used or to be used wholly or partly for the purposes of such a business, or
- (c) doing any other thing which appears to the appropriate Minister to constitute a long term improvement to land comprised in such a business,

being expenditure approved by the appropriate Minister for the purposes of the grant.

(2) Subject to any order under section 34 of this Act, the amount of any grant under this section shall be ten per cent. of the expenditure in respect of which it is made.

(3) A grant may be made under this section subject to such conditions as the appropriate Minister may think fit to impose.

(4) In this section—

“fixed equipment” does not include a dwelling-house but, subject to that, has the same meaning as in the Agriculture Act 1947 or, in Scotland, the Agriculture (Scotland) Act 1948, and

“agricultural business” means a trade or business consisting in, or such part of any trade or business as consists in, the pursuit of agriculture;

and, for the purposes of this section, contributions by a person towards the costs incurred by any authority in providing a cattle-grid under Part V of the Highways Act 1959, or the Highways (Provision of Cattle-Grids) Act 1950, shall be treated as expenditure by him in the provision of that cattle-grid.

(5) For the purposes of this section, expenditure shall be treated as incurred by a person on or after 17th January 1966 if or so far as it consists of a payment or payments made by

1947 c. 48.

1948 c. 45.

1959 c. 25.

1950 c. 24.

him on or after that date, notwithstanding that the obligation to make that payment or those payments was incurred, or fell to be discharged, before that date.

PART II

32.—(1) The appropriate Minister may, out of money provided by Parliament, make to any person a grant towards expenditure incurred by that person on or after 17th January 1966 in providing a new tractor or harvester in respect of which there is in force, at the time the grant is made, a licence under the Vehicles (Excise) Act 1962 upon which duty has been paid at the rate applicable under that Act to agricultural machines, being expenditure approved by the appropriate Minister for the purposes of the grant.

Grants towards expenditure on agricultural tractors and harvesters.
1962 c. 13.

(2) Subject to any order under section 34 of this Act, the amount of any grant under this section shall be ten per cent. of the expenditure in respect of which it is made.

(3) A grant under this section shall, as the appropriate Minister may determine, be payable either as a lump sum or in two or more instalments.

(4) A grant may be made under this section subject to such conditions as the appropriate Minister may think fit to impose.

(5) In this section "new" means unused and not second-hand.

(6) Subsection (5) of the last foregoing section shall apply for the purposes of this section as it applies for the purposes of that section.

(7) In the application of this section to Northern Ireland, for the words in subsection (1) from "a licence under" to "agricultural machines" there shall be substituted the words "a licence under the Vehicles (Excise) Act (Northern Ireland) 1954 upon which duty has been paid at the rate applicable to the machines mentioned in section 4(2)(a) of that Act"; and this section shall apply in relation to tractors and harvesters provided for use in the Isles of Scilly with the omission from the said subsection (1) of all reference to their being licensed as therein mentioned.

1954 c. 17 (N.I.).

33.—(1) Subject to subsections (2) and (3) below, the appropriate Minister may, out of money provided by Parliament, make in respect of any grant to which this section applies a supplementary grant, payable in such manner as the appropriate Minister may determine, of an amount equal (subject to any order under section 34 of this Act) to five per cent. of the cost or expenditure by reference to which the amount of the first-mentioned grant (hereafter referred to as "the basic grant") was calculated.

Supplements to improvement and water supply grants.

PART II

(2) No grant shall be made under this section unless application for payment of the basic grant, or of the first instalment of the basic grant, was first made on or after 17th January 1966; and no grant shall be so made in any case where the amount of the basic grant exceeds or exceeded forty-five per cent. of the cost or expenditure by reference to which it was calculated.

(3) Where any grant to which this section applies is payable by instalments on the completion of parts of the work in respect of which it is made, each instalment thereof shall be treated for the purposes of subsections (1) and (2) above as if it were a separate grant.

(4) Subject to any order under section 34 of this Act, the following are the grants to which this section applies—

- | | |
|-------------|--|
| 1957 c. 57. | (a) grants made under section 30 of this Act, or under section 12 of the Agriculture Act 1957 (which relates to long-term improvements of agricultural land, and is superseded by the said section 30); |
| | (b) grants made in respect of improvements of a kind to which the said section 30 applies out of money provided by Parliament by any Act passed after 27th April 1966 but before the passing of this Act; |
| 1960 c. 22. | (c) grants made under section 1(1) of the Horticulture Act 1960 (horticultural improvements); and |
| | (d) in England and Wales, grants made in respect of works for the supply of water under section 15 of the Agriculture (Miscellaneous War Provisions) Act 1940 or section 5 of the Agriculture (Miscellaneous Provisions) Act 1944. |

(5) A grant may be made under this section subject to such conditions as the appropriate Minister may think fit to impose.

Power to vary rates, and extend scope, of grants for agricultural investment.

34.—(1) Orders may from time to time be made under this section—

- (a) varying, either generally or as respects expenditure or, as the case may be, basic grants of a description therein specified, the rate at which grant is payable under section 31, section 32 or section 33 of this Act;
- (b) providing for the making of grants under the said section 32, at such rate as may be so specified, in respect of expenditure incurred on or after a date not earlier than 17th January 1966 in the provision of any description of self-propelled machines other than tractors and harvesters;

- (c) providing for the making of supplementary grants under the said section 33, at such rate as may be so specified, in respect of grants under any enactment other than one specified in subsection (4) of that section, being grants for the payment of which, or of the first instalment of which, application was first made on or after a date not earlier than 17th January 1966.

(2) An order under this section—

- (a) may be made for England and Wales, for Scotland, for Northern Ireland, or for any two or all of those parts of the United Kingdom jointly,
- (b) shall be made with the consent of the Treasury, and by the Minister of Agriculture, Fisheries and Food and the Secretary of State jointly if it is made for Great Britain or the United Kingdom, and the appropriate Minister in any other case,
- (c) may contain such incidental and supplemental provisions as appear appropriate to the Minister of Agriculture, Fisheries and Food and the Secretary of State or, as the case may be, to the appropriate Minister,
- (d) may be varied or revoked by a subsequent order,
- (e) shall be made by statutory instrument.

(3) A statutory instrument containing an order under subsection (1)(a) above, or an order under subsection (1)(b) or (1)(c) above providing for the payment of grants at a rate other than that specified in section 32(2) or, as the case may be, 33(1) of this Act, shall be laid before the House of Commons after being made, and the order shall cease to have effect at the end of twenty-eight days after that on which it is made (but without prejudice to anything previously done under the order or to the making of a new order) unless before the end of that period the order is approved by resolution of that House.

In reckoning any period of twenty-eight days for the purposes of this subsection, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which the House of Commons is adjourned for more than four days.

(4) A statutory instrument containing any other order under subsection (1) above shall be subject to annulment in pursuance of a resolution of the House of Commons.

Supplemental

35. A scheme under section 26 or section 27 of this Act—
- (a) shall be made by the appropriate Minister with the approval of the Treasury,

General provisions for schemes under Part II.

PART II

- (b) may authorise the making of different grant in different circumstances,
- (c) may authorise the reduction or withholding of grant where assistance in respect of expenditure for which the grant is made is or may be given otherwise than under the scheme, but so that where expenditure, or part of expenditure, is eligible for grant at different rates, grant at the higher rate shall be allowed,
- (d) may authorise the reduction or withholding of grant in respect of land for the benefit of which any other prescribed grant or contribution has been made out of money provided by Parliament or has been so made within a prescribed period,
- (e) may be made for England and Wales, for Scotland, for Northern Ireland, or for any two or all of those parts of the United Kingdom jointly,
- (f) may contain such incidental and supplemental provisions as appear to the appropriate Minister expedient for the purposes of the scheme,
- (g) may be varied or revoked by a subsequent scheme,
- (h) shall be made by statutory instrument of which a draft has been laid before and approved by resolution of each House of Parliament.

Supplemental provisions as to grants under Part II and application of capital on works thereunder.

36.—(1) Regulations under this section may confer on a person eligible for grant under section 26 or section 30 of this Act the amount of which depends on the cost of carrying out works of some kind, or on some other cost, the right to elect to take that cost for the purposes of the grant as being of such standard amount as may be determined by or under the regulations.

(2) Regulations under this section or a scheme under section 26 of this Act may prescribe tests by which expenditure or cost not otherwise qualifying for grant may be regarded, for the purposes of section 26 or section 30 of this Act, and of subsection (1) above, as being partly expenditure qualifying for grant, and partly not, and authorise the making of grant in accordance with the regulations or scheme in respect of the part to be so regarded as qualifying for grant.

(3) Regulations under this section may provide that where grant is payable under section 26 or section 30 of this Act in respect of a cattle-grid to be provided in pursuance of Part V of the Highways Act 1959 or the Highways (Provision of Cattle-Grids) Act 1950, grant shall be payable to a person making a contribution to the cost of providing the cattle-grid, instead of the authority providing the cattle-grid,

and the regulations may provide for adjustment of the amount so paid where any part of the contribution becomes repayable.

(4) Regulations under this section may also provide for the adjustment, where any contribution in respect of the provision of a cattle-grid becomes repayable in whole or in part, of any amount paid in respect of the contribution by way of grant under section 31 of this Act.

(5) The provisions of the Settled Land Act 1925 relating to improvements authorised by that Act (including those provisions as extended to trusts for sale by section 28 of the Law of Property Act 1925) shall, if it is so provided by regulations under this section, have effect as if works of any description specified in the regulations, being works of a kind mentioned in Schedule 4 to this Act or prescribed by a scheme under section 26 above, were included in Schedule 3 to that Act (which sets out the improvements so authorised, distinguishing in Parts I, II and III between improvements the costs of which are not liable to be replaced, may be required to be replaced, and must be required to be replaced) and were contained in the Part thereof specified in the regulations.

(6) In the application of subsection (5) above to Northern Ireland—

- (a) for any reference to the Settled Land Act 1925 and to Schedule 3 to that Act there shall be substituted references to the Settled Land Act 1882 and to section 25 of 1882 c. 38. that Act, respectively ;
- (b) the words from “ (including those provisions ” to “ Law of Property Act 1925) ” and from “ distinguishing in ” onwards shall be omitted.

(7) Regulations under this section—

- (a) shall be made by the appropriate Minister, and may be made for England and Wales, for Scotland, for Northern Ireland, or for any two or all of those parts of the United Kingdom jointly, and
- (b) shall be made by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament.

37.—(1) If at any time after the approval of proposals under section 26, section 27 or section 30 of this Act, and whether before or after the proposals have been fully carried out, it appears to the appropriate Minister—

- (a) that any condition imposed by the appropriate Minister in giving his approval has not been complied with, or

PART II

- (b) in the case of proposals for the carrying out of work, that the work has been badly done, or has been or is being unreasonably delayed, or is unlikely to be completed, or
- (c) that in connection with the submission of the proposals the person submitting them gave information on any matter which was false or misleading in a material respect,

the appropriate Minister may, on demand made after compliance with subsection (4) below, recover any grant or any part of a grant paid by him by reference to the proposals and revoke the approval in whole or in part.

(2) In the case of a grant under section 27 of this Act which is a lump sum payable by instalments or a grant by way of annuity the appropriate Minister may, in a case within paragraph (a) or paragraph (c) of subsection (1) above, after compliance with subsection (4) below direct that future instalments of the grant or annuity shall not be payable.

(3) If it appears to the appropriate Minister—

- (a) that any condition imposed by him on the making of a grant under section 31 or section 32 of this Act has not been complied with, or
- (b) that, in connection with his application for a grant under either of those sections, the person by whom the application was made gave information on any matter which was false or misleading in a material respect,

the appropriate Minister may, on demand made after compliance with subsection (4) below, recover the grant or any part thereof.

(4) Before making a demand, revoking an approval or giving a direction under the preceding provisions of this section the appropriate Minister—

- (a) shall give to any person to whom any payment by way of grant would be payable by reference to the proposals, or from whom any such payment would be recoverable, a written notification of the reasons for the action proposed to be taken by the appropriate Minister, and
- (b) shall accord to each such person an opportunity of appearing before and being heard by a person appointed for the purpose by the appropriate Minister, and
- (c) shall consider the report by a person so appointed and supply a copy of the report to each person who is entitled to appear before the person submitting it.

(5) If it appears to the appropriate Minister that the circumstances specified in paragraph (a) or (b) of subsection (3) above

obtain in the case of a grant under section 32 of this Act payable by instalments, he may direct that future instalments of the grant shall not be payable.

(6) Where a grant by reference to which a supplementary grant has been made under section 33 of this Act becomes recoverable in whole or in part, the supplementary grant shall also become recoverable on demand.

38.—(1) This section shall have effect where, after the carrying out of any proposals for amalgamation approved for the purposes of a scheme under section 26 of this Act, a dwelling-house which, at the time when the proposals were submitted, was occupied by a person responsible (whether as owner, tenant, or servant or agent of another) for the control of the farming of any of the land comprised in the amalgamation is let on a regulated tenancy otherwise than to—

Recovery of possession of farmhouses made redundant by amalgamation.

- (a) a person who ceased to be so responsible as part of the amalgamation, or
- (b) a person who is, or at any time was, employed by the landlord in agriculture, or
- (c) the widow of any such person as is mentioned in either of the preceding paragraphs.

(2) If—

- (a) not later than the commencement of the regulated tenancy, the tenant has been given notice in writing that possession may be recovered under this section, and
- (b) apart from the Rent Acts, the landlord would be entitled to recover possession of the dwelling-house, and
- (c) the court is satisfied that the dwelling-house is required for occupation by a person employed or to be employed by the landlord in agriculture,

the court shall, in proceedings commenced by the landlord during the period specified in subsection (3) below, make an order for the possession of the dwelling-house, whether or not it would have power to do so under section 3 of the Act of 1933, and section 5(2) of the Act of 1920 shall not apply in relation to the order.

(3) The period referred to in subsection (2) above is one of five years beginning with the date on which the proposals for the amalgamation were approved or, if occupation of the dwelling-house after the amalgamation continued in, or was first taken by, a person falling within subsection (1)(a) above or his widow, a period expiring three years after the date on which the dwelling-house next became unoccupied.

(4) In this section—

“the Rent Acts” means the Rent and Mortgage Interest Restrictions Acts 1920 to 1939, or any of those Acts,

PART II

1920 c. 17.

1933 c. 32.

and "the Act of 1920" and "the Act of 1933" mean respectively the Increase of Rent and Mortgage Interest (Restrictions) Act 1920 and the Rent and Mortgage Interest Restrictions (Amendment) Act 1933 ;

1948 c. 47.

1949 c. 30.

"employed" and "agriculture" have the same meanings as in the Agricultural Wages Act 1948 or, in Scotland, the Agricultural Wages (Scotland) Act 1949 ;

"landlord", "tenant" and "tenancy" have the same meanings as in the Act of 1920 ;

1965 c. 75.

"regulated tenancy" means a tenancy to which the Rent Acts apply by virtue of section 1 of the Rent Act 1965 ; and

"order for possession", in relation to Scotland, means decree of removing or warrant of ejection or other like order.

Provisions
relating to
Northern
Ireland.

39.—(1) Subject to this section, this Part of this Act shall extend to Northern Ireland with the exception of section 28 and section 38 and, subject to the following provisions of this section, of section 29.

(2) The Ministry of Agriculture for Northern Ireland may acquire by agreement any estate or interest in—

(a) any land used for agriculture,

(b) any other agricultural land,

(c) where any such land as is mentioned in paragraph (a) or (b) above is offered to the said Ministry for acquisition by it on the condition that it also acquires other land not falling within either of those paragraphs, that other land,

for the purpose of effecting amalgamations of agricultural land and reshaping agricultural units.

(3) The said Ministry may manage, farm or dispose of land acquired by it under subsection (2) above—

(a) in such manner as appears to the said Ministry expedient for the purpose for which the land was acquired,

(b) if the said Ministry is satisfied that the land ought to be devoted to some other purpose, in such manner as appears to the said Ministry expedient therefor,

and in section 27(1)(b) of this Act as it applies in Northern Ireland the reference to the appropriate Minister shall include a reference to the said Ministry.

1954 c. 53
(N.I.).

Section 45(3) of the Interpretation Act (Northern Ireland) 1954 shall have effect for the purposes of this subsection as it has effect for the purposes of an enactment of the Parliament of Northern Ireland passed after the commencement of that Act.

(4) Sections 4 and 5 of the Land Law (Ireland) Act 1881 shall not have effect in relation to any tenancy granted by the said Ministry under subsection (3) above. PART II
1881 c. 49.

(5) Subsections (2) and (3) above shall in particular confer power to enter into transactions involving loss, including transactions corresponding to those into which the appropriate Minister may enter under section 29(2) of this Act.

(6) Section 29(3) of this Act, and Schedule 3 to this Act when read with the said section 29(3), shall apply in Northern Ireland as if—

- (a) the said Ministry were substituted for the appropriate Minister,
- (b) the reference to legal costs in the said section 29(3)(a) included a reference to the costs of obtaining any requisite consent of the Ministry of Finance for Northern Ireland,
- (c) the said section 29(3)(a) included a reference to compensation for disturbance under section 3 of the Land-lord and Tenant (Ireland) Act 1870. 1870 c. 46.

(7) The functions conferred by this section on the said Ministry shall be exercised in accordance with arrangements made between the Ministry and the Minister of Agriculture, Fisheries and Food with the approval of the Treasury, and the Minister of Agriculture, Fisheries and Food shall pay out of money provided by Parliament any expenses incurred by the said Ministry in exercising those functions, and any sums received by that Ministry in exercising those functions (including any sums so received or recovered under Schedule 3 to this Act) shall be paid over to the said Minister.

40.—(1) In this Part of this Act, except where the context otherwise requires— Interpretation
of Part II.

- “amalgamation” and “boundary adjustment” have the meanings given by section 26 of this Act;
- “exchange” in relation to land in Scotland means excambion;
- “prescribed”, in relation to the contents of a scheme, means prescribed by the scheme.

(2) In this Part of this Act—

- (a) “commercial unit” means an agricultural unit which in the opinion of the appropriate Minister is capable, when farmed under reasonably skilled management, of providing full-time employment for an individual occupying it and for at least one other man (or full-time employment for an individual occupying it and

PART II

employment for members of his family or other persons equivalent to full-time employment for one man);

- (b) "intermediate unit" means an agricultural unit which, in the opinion of the appropriate Minister, is capable, when farmed under reasonably skilled management, of providing full-time employment for an individual occupying it.

In this subsection "full-time employment" shall be construed in accordance with any provisions defining that expression in any scheme made under section 26 of this Act.

(3) In this Part of this Act "uncommercial unit" shall be construed by reference to the definition of commercial unit, except that, where the appropriate Minister so directs, it may be treated as referring to the relevant agricultural unit exclusive of any one dwelling house of the unit and, if the Minister so directs, exclusive of any small portion of land to be occupied with that dwelling house.

(4) Where any agricultural land in Scotland consists of or includes a croft or holding, for the purposes—

- (a) of determining under the preceding provisions of this section whether an agricultural unit formed by that land is commercial, intermediate or uncommercial, and

- (b) of calculating under section 27(2)(c) of this Act the income derived from the land,

the land shall be taken to include any right in pasture or grazing land held by the tenant or landholder whether alone or in common with others and deemed to form part of the croft or holding.

In this subsection "croft" and "holding" have the meanings ascribed to them by the Crofters (Scotland) Act 1955 and the Small Landholders (Scotland) Acts 1886 to 1931 respectively.

1955 c. 21.

PART III

HILL LAND

General

Grants for
improvements
benefiting
hill land.

41.—(1) The appropriate Minister may in accordance with a scheme make grants towards the cost of improvements for the benefit of hill land (defining "hill land" in the scheme).

(2) The descriptions of improvements in respect of which grant may be paid shall be such as the appropriate Minister may prescribe in the scheme as being in his opinion improvements which will improve the productivity of hill land used for agriculture.

PART III

(3) A grant under this section may be by way of supplement to any grant or contribution payable in respect of the improvement in question under any enactment other than this section, and a scheme under this section may provide for the grant by way of supplement being subject to all or any of the restrictions, conditions and other incidental and supplemental provisions (including penalties) applying to the other grant or contribution.

(4) The duration of a scheme under this section shall be a period not exceeding five years, but that period may from time to time be extended by subsequent schemes for periods not exceeding five years.

(5) A scheme under this section shall provide for grant in respect of any expenditure being payable by reference to proposals which have been submitted to and approved by the appropriate Minister, and the approval—

(a) may be given before or, in such classes of cases as the appropriate Minister may direct, after the carrying out of the proposals,

(b) may be made subject to such conditions as the appropriate Minister may specify, and in particular subject to any condition as to the time within which the proposals are to be carried out,

(c) may be varied or withdrawn by the appropriate Minister with the applicant's written consent.

(6) Grants under this section shall be paid out of money provided by Parliament.

(7) Sections 35, 36 and 37 of this Act shall apply in relation to this section as they apply in relation to section 26 of this Act.

(8) This section extends to Northern Ireland.

42.—(1) The improvements referred to in section 12 of the Hill Farming Act 1946 (which authorises the Minister to carry out improvements for the benefit of hill farming land subject to rights of common) shall include (in addition to improvements within the meaning of that Act) any improvements specified in a scheme under the foregoing provisions of this Part of this Act. Improvement of hill farming land subject to rights of common. 1946 c. 73.

(2) Section 12(13) of the Hill Farming Act 1946 (under which the net cost of work done under that section is to be brought into account for the purposes of the limit on grants in that Act) shall not apply in relation to any improvement carried out after the coming into force of this section but any sum which, but for this subsection, would have been so brought into account shall be brought into account as if it were a grant made under the last foregoing section.

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Subsidies for
hill sheep
and cattle.

1946 c. 73.

1951 c. 18.

1956 c. 72.

1963 c. 11.

43.—(1) Section 13 of the Hill Farming Act 1946 (which authorises payments year by year for hill sheep and cattle but which, as amended by the Livestock Rearing Act 1951, the Hill Farming Act 1956 and section 2 of the Agriculture (Miscellaneous Provisions) Act 1963, is restricted to a period of years ending in 1967) shall apply without any such restriction and accordingly—

(a) “relevant days” in the said section 13(1)(a) and in related contexts in the same Act shall mean such day of December in any year as may be specified in the relevant scheme under that section, and

(b) in the said section 13(1)(b) for the words from “the year 1947” to the words “succeeding years” there shall be substituted the words “any year”.

(2) Schemes made under the said section 13 after the coming into force of this section shall restrict payments under subsection (1)(a) and payments under subsection (1)(b) of that section to periods not exceeding five years, but any such period may from time to time be extended by further schemes for periods not exceeding five years.

(3) This section extends to Northern Ireland.

Winter
keep grants.

44.—(1) Section 10(1) of the Agriculture (Miscellaneous Provisions) Act 1963 (which authorises payment of winter keep grants in respect of certain livestock rearing land) shall be amended by substituting 5 years for 3 years as the maximum period which may be specified in a scheme made under that subsection.

(2) This section extends to Northern Ireland.

Special measures for certain areas

Rural
Development
Boards.

45.—(1) With a view to applying the provisions of this Part of this Act for meeting the special problems of the development as rural areas of hills and uplands, and the special needs of such areas, the appropriate Minister may, in accordance with this Part of this Act, establish a Board, to be known as a Rural Development Board, for any area appearing to be one where those problems or needs exist.

(2) Those special problems and needs include the special difficulties in the formation of commercial units of agricultural land in such areas, the need for an overall programme for guidance in making decisions as to the use of land in such areas for agriculture and forestry, so that those two uses are complementary, the need for improved public services in such areas in step with their development for agricultural and forestry purposes, and the need for preserving and taking full advantage of the amenities and scenery in those areas in the course of their development for those purposes.

PART III

(3) The overall programme referred to in the preceding subsection is one having regard, among other things, to the special economic considerations and the long-term nature of forestry.

(4) The amenities to which consideration is to be given under subsection (2) above shall include any feature of scientific or historic interest in those areas, and in particular, but without prejudice to the generality of the foregoing, their flora and fauna and physiographical features, and any buildings of special interest.

(5) Schedule 5 to this Act shall have effect as respects the procedure for establishing a Rural Development Board, and its constitution.

(6) On the establishment of a Rural Development Board a notice referring to the provisions of this Part of this Act controlling sales of land and controlling afforestation shall be registered in the register of local land charges by the proper officer of every local authority (not being a county council) in the area of which any part of the Board's area lies, and shall be so registered in the prescribed manner.

(7) In relation to any land in the area of the Board the provisions of section 15(1) of the Land Charges Act 1925 (which make an unregistered charge void in certain circumstances) shall apply as if the said provisions of this Part of this Act were a charge required to be registered under that subsection, and the other provisions of that Act, including in particular section 17(3) (which relates to the conclusive effect of a certificate of search) shall have effect accordingly. 1925 c. 22

(8) It shall be the duty of the appropriate Minister to give to the local authority's officer the information necessary to enable him to comply with subsection (6) of this section.

(9) The provisions of subsections (6), (7) and (8) of this section shall not apply to Scotland, and on the establishment of a Rural Development Board in Scotland, the Secretary of State shall cause a notice referring to the provisions of this Part of this Act controlling sales of land and controlling afforestation to be lodged at the principal office of the county council of every county in the area of which any part of the Board's area lies, and the notice shall be available for inspection free of charge at all reasonable hours.

(10) In the foregoing provisions of this section and the said Schedule 5 "the appropriate Minister" means, in relation to Wales, the Minister of Agriculture, Fisheries and Food and the Secretary of State for Wales acting jointly.

(11) The appropriate Minister shall to such extent as may be approved by the Treasury pay out of money provided by Parliament any expenditure incurred, or to be incurred, by a Board in the performance of their functions.

PART III
Functions
of Rural
Development
Boards.

46.—(1) It shall be the function of a Rural Development Board—

- (a) to keep under review all means of meeting the problems and needs described in the last foregoing section in their area,
- (b) in consultation with such local authorities and other bodies as appear to the Board to have an interest, to draw up a programme for action to meet those problems and needs and, so far as the programme will entail expenditure by the Board, to submit to the appropriate Minister for his approval proposals for that expenditure,
- (c) to concert, promote, assist or undertake measures to implement the programme subject, so far as those measures involve expenditure by the Board, to approval by the appropriate Minister.

(2) The appropriate Minister may approve in whole or in part any proposals submitted to him under subsection (1)(b) above, or may refuse to approve them.

(3) It shall be the duty of a Rural Development Board and of the Forestry Commission to co-ordinate the preparation and implementation of their proposals and programmes for the Board's area, and for that purpose to consult together at all stages and, where necessary, to act in concert.

Any dispute between them shall be referred to and determined by the appropriate Minister, and, in relation to Wales, "the appropriate Minister" in this subsection has the meaning given by subsection (10) of the last foregoing section.

(4) In the discharge of their functions a Rural Development Board may—

- (a) acquire by agreement any land in their area,
- (b) manage, improve, farm, sell, let or otherwise deal with any of their land, and may in particular sell or let any land subject to any depreciatory conditions imposed in the interests of the community or for any purpose connected with the discharge of their functions,
- (c) acquire by agreement any farming business or any dead or live farm stock,
- (d) build on and otherwise develop any of their land, and in particular provide dwellings for their tenants and employees,
- (e) provide equipment and services for persons who are their tenants and who are engaged or employed in agriculture or forestry,

- (f) carry out or commission the carrying out of inquiries, investigations or researches in connection with the discharge of their functions. PART III

47.—(1) In the discharge of their functions a Rural Development Board may, in accordance with arrangements approved by the appropriate Minister and the Treasury, give financial assistance, whether by way of grant or loan or partly grant and partly loan, towards the undertaking of measures to implement any programme drawn up under section 46 of this Act, and in particular (subject to its being so approved)—

- (a) financial assistance for providing or improving communications and public services in the Board's area,
- (b) financial assistance towards expenditure incurred in installing or connecting a supply of electricity, gas or water to a dwelling-house or other premises used in connection with agriculture or forestry or for the improvement of accommodation on such premises for tourists, being expenditure incurred by an owner or occupier of the premises,
- (c) financial assistance towards expenditure incurred in providing or improving a site on an agricultural or forestry unit for tourists' caravans or as a tourists' camping site, being expenditure incurred by the occupier of the agricultural or forestry unit.

(2) On making a grant or loan under the foregoing subsection the Board may impose such conditions as they think fit, including, in the case of a grant, conditions for repayment in specified circumstances.

48.—(1) Without prejudice to the generality of section 46 of this Act, a Rural Development Board shall have power to acquire by agreement, hold and dispose of land in their area for the purpose of effecting amalgamations of agricultural land and reshaping agricultural units, and power for the said purposes to enter into transactions involving loss, including—

- (a) amalgamating holdings of land in a way which renders less valuable, or useless, any buildings or equipment on any of the land,
- (b) allowing the occupier of an uncommercial unit to retain occupation of a dwelling-house on the land when the remainder of the unit is acquired by the Board for the purposes of amalgamation,
- (c) selling land resulting from an amalgamation effected by the Board subject to depreciatory conditions imposed for the purpose of ensuring that the land continues to

Boards' powers of giving financial assistance.

Promotion of amalgamations and boundary adjustments by Rural Development Boards.

PART III

be held in single ownership and single occupation for agricultural purposes.

(2) A deed by which a Rural Development Board conveys land, or an estate or interest in land, may apply Schedule 3 to this Act to any of that land, and to any other land, but only if all the persons who will have an estate or interest in the land to which Schedule 3 is so applied are parties to the deed; and in that Schedule as so applied "relevant Exchequer payments" shall mean such amounts as are specified in the deed for the purposes of this subsection under the heads of:—

1948 c. 63.
1949 c. 75.

- (a) the incidental costs incurred by the Board in acquiring and disposing of the land, estate or interest conveyed by the deed, being costs consisting of surveyor's fees and legal costs, stamp duty on any conveyance, lease, tenancy agreement or mortgage or heritable security and any compensation for disturbance under section 34 of the Agricultural Holdings Act 1948 or section 35 of the Agricultural Holdings (Scotland) Act 1949,
- (b) any such loss as is described in subsection (1) of this section incurred by the Board in dealing with the land, estate or interest so conveyed, including any reduction in the purchase price obtained by them on the transaction effected by the deed in consequence of the depreciatory conditions contained in the deed,
- (c) such sum as the appropriate Minister may certify as the sum representing his administrative expenses (including an appropriate proportion of overhead expenses and other fixed or general expenses) incurred in connection with the transaction to which the deed gives effect,

and "relevant date" means the date on which the transaction to which the deed relates takes effect.

(3) Where under section 27(1)(b) or (c) of this Act a scheme under that section authorises the making of grant by reference to arrangements made or approved by a Rural Development Board, the Rural Development Board shall repay to the appropriate Minister the amount of any grant paid by the appropriate Minister under the scheme by reference to any such arrangements.

(4) Section 29(4) and (5) of this Act shall apply in relation to a Rural Development Board as they apply in relation to the appropriate Minister.

(5) In relation to any tenancy certified by a Rural Development Board in the instrument by which the tenancy is granted as being a tenancy granted in connection with transactions

entered into by the Board for the purpose of effecting amalgamations of agricultural land and reshaping agricultural units, section 33 of the Housing Repairs and Rents Act 1954 and section 25 of the Housing (Repairs and Rents) (Scotland) Act 1954 (exclusion of local authority houses from Rent Acts) shall apply to the Rural Development Board as they apply to the council of a county or other local authority. 1954 c. 53. 1954 c. 50.

49.—(1) Subject to this and the next following section, any Control of sale transfer of land in the area of a Rural Development Board of certain land shall require the Board's written consent.

(2) An application for consent under this section shall be in such form as the Board direct, and on the application the Board may refuse or grant the consent applied for.

(3) The Board shall not refuse consent unless they are satisfied that the land to which the application relates, if acquired by them in accordance with this section—

- (a) can suitably be used or disposed of by them for the purpose of effecting amalgamations of agricultural land or reshaping agricultural units, or
- (b) can suitably be used or disposed of by them in a way which will promote the co-ordination of the use of land for forestry and agriculture, or
- (c) is land which, in the opinion of the Board and the Forestry Commission, ought to be planted by the Forestry Commission, or
- (d) can suitably be used or disposed of by them for some purpose ancillary to the use of other land for agriculture or forestry,

or unless the Board are satisfied that refusal of their consent will prevent the creation of an uncommercial unit of agricultural land.

(4) The Board shall, within two months of receipt of an application duly made for consent under this section, serve on the applicant notice of the manner in which the application has been dealt with; and, except where their decision is to grant their consent, the notice shall give the reasons for their decision.

(5) Within two months of receipt of a notice under the last foregoing subsection stating that the Board withhold consent the applicant may appeal to the appropriate Minister on the ground that the application for consent ought to be granted, and before determining the appeal the appropriate Minister shall, if either the appellant or the Board so desire, afford to each of them an opportunity of appearing before, and being heard by, a person

PART III appointed by the appropriate Minister for the purpose ; and in relation to appeals under this section—

1962 c. 38.

(a) where the appeal is to the Minister of Agriculture, Fisheries and Food, section 180 of the Town and Country Planning Act 1962 (appeals to High Court from decision of Minister) shall apply in relation to an appeal under this subsection as it applies in relation to an appeal under Part IV of that Act against an enforcement notice, and

(b) where the appeal is to the Secretary of State, the Secretary of State may, and if so directed by the Court of Session shall, state a case for the opinion of that Court on any question of law arising in the proceedings, and an appeal shall lie to the Court of Session on any question of law from the decision of the Secretary of State.

(6) Within three months from the date of receipt of a notice under subsection (4) of this section stating that the Board withhold consent or, if an appeal is brought under subsection (5) of this section which does not result in the granting of consent, from the final determination of the appeal, the applicant may serve on the Board a notice requiring the Board to purchase the estate or interest proposed to be transferred by him in the transaction to which the application relates, and the following provisions of this section (under which the Board can be compelled to purchase it) shall have effect.

(7) Subject to the following provisions of this section, on service of a notice under the last foregoing subsection—

(a) the Board shall be deemed to be authorised to acquire compulsorily the estate or interest to which the notice relates by a compulsory purchase order,

(b) the Board shall be deemed to have served a notice to treat in respect of that interest at that time,

and in relation to this subsection—

1965 c. 56.

1947 c. 42.

(i) “ compulsory purchase order ” means an order to which Part I of the Compulsory Purchase Act 1965 applies, or, as the case may be, an order which has become operative under the Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947 ;

1961 c. 33.

1963 c. 51.

(ii) the power of withdrawal of a notice to treat conferred by section 31 of the Land Compensation Act 1961 or section 39 of the Land Compensation (Scotland) Act 1963, and the power of entry conferred by section 11(1) of the said Act of 1965 or by paragraph 3 of Part I of Schedule 2 to the said Act of 1947, shall not be exercisable in relation to a notice to treat deemed to be served by virtue of paragraph (b) of this subsection.

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(8) The applicant may withdraw the purchase notice—

(a) where there has been a final determination by the Lands Tribunal on the question of compensation payable pursuant to the purchase notice, within six weeks from the date of the final determination, and

(b) in any other case, at any time before the acceptance in writing by the applicant of an unconditional offer in writing by the Board of a sum as such compensation,

but the applicant shall be liable to pay compensation to the Board for any loss or expense occasioned to the Board by the giving and withdrawal of the purchase notice.

For the purposes of this subsection a claim shall not be deemed to be finally determined so long as the time for requiring the Lands Tribunal to state a case with respect thereto, or for appealing from any decision on the points raised by a case so stated, has not expired.

(9) If the applicant's estate or interest in the land to which the application relates is greater than what is proposed to be transferred by the transaction to which the application relates, the Board may by notice given to the applicant within two months of receipt of the purchase notice require that the purchase notice shall apply to all the estate or interest of the applicant in the land.

(10) An application for consent under this section must be sent to the Board by registered post or recorded delivery service, or delivered to the secretary or chief officer of the Board, and if within the period specified in the next following subsection the Board do not notify the applicant of their decision on the application, this section shall have effect as if at the expiration of that period the Board had granted the consent; and it shall be the duty of the Board to give a written consent to the applicant accordingly.

(11) Any applicant who has not received a notice as required by subsection (4) of this section may by notice (to be served on the Board in the way required for service of his application) require the Board to make good their default and the period at the end of which subsection (10) above shall operate shall be the period of fourteen days from the service of that notice.

(12) In relation to Scotland, any reference in this section to the Lands Tribunal shall be construed as a reference to the Lands Tribunal for Scotland, but until sections 1 to 3 of the Lands Tribunal Act 1949 come into force as regards Scotland, 1949 c. 42. such reference in subsection (8)(a) of this section shall be construed as referring to an official arbiter appointed under Part I of the Land Compensation (Scotland) Act 1963. 1963 c. 51.

PART III

(13) References in this and the next following section to the transfer of land include references to the granting of a lease of land for a term exceeding 10 years, and to assigning a lease of land with an unexpired term exceeding 10 years, but in relation to the grant of a lease references in this section to the estate and interest of the person transferring or proposing to transfer the land shall be taken as references to his estate and interest both in the reversion and the lease.

(14) In the application of this section to Scotland, for the last foregoing subsection there shall be substituted the following subsection—

“(13) For the purposes of this and the next following section, any grant of a lease for a period exceeding 10 years and any assignation of a lease with an unexpired period exceeding 10 years shall be a transfer of land, and in relation to the grant of a lease any references in this section to the estate and interest of the person transferring or proposing to transfer the land shall be taken as references to his estate and interest in the lease and in the land subject thereto”.

Control of sale
of certain land:
exceptions and
supplemental
provisions.

50.—(1) The last foregoing section shall only apply to land which at the time when it is or is to be transferred is agricultural land or woodland or unenclosed mountain, hill or heath land, or common land or waste land.

(2) Where one of the grounds on which an appeal is brought under subsection (5) of the last foregoing section is that the proposed transfer is part of a proposed transaction involving land in the Board's area which is not within subsection (1) of this section, or involving land which is not within the Board's area, the appropriate Minister may, if he decides not to allow the appeal but is of opinion that the appellant would be substantially prejudiced if he is unable to dispose in one transaction of all the land comprised in the proposed transaction, with the consent of the appellant direct that any purchase notice served under the last foregoing section by the appellant shall relate both to the land to which the application relates and also to the other land, or such part of it as the appropriate Minister may direct.

(3) The last foregoing section shall not apply to a transfer to or from—

(a) a local authority,

(b) statutory undertakers as defined in section 221(1) of the Town and Country Planning Act 1962 or section 113(1) of the Town and Country Planning (Scotland) Act 1947,

(c) any body corporate which is established by or under any enactment for the purpose of carrying on under

national ownership any industry or part of an industry or undertaking and whose affairs are managed by the members thereof,

- (d) the National Trust,
- (e) a National Parks planning authority,
- (f) the Natural Environment Research Council.

In this subsection the "National Trust" means in relation to Scotland the National Trust for Scotland for Places of Historic Interest or Natural Beauty incorporated by the Order confirmed by the National Trust for Scotland Order Confirmation Act 1935 ; 1935 c. ii. and "National Parks planning authority" means a local planning authority whose area consists of or includes the whole or part of a National Park.

(4) The last foregoing section shall not apply to a transfer by an individual to a member of his family or to the trustees of a settlement exclusively for the benefit of members of his family, and in this subsection "family" means the individual's husband or wife, any lineal descendant or ancestor of his, and his brother and sister and any child of a brother or sister, and in deducing any such relationship an adopted child shall be treated as a child and any relationship of the half blood shall be treated as a relationship of the whole blood.

(5) The last foregoing section shall not apply to a transfer of land effected in pursuance of a contract of sale concluded before the land came to be in the area of the Board or, if the order establishing the Board so provides, before the expiry of such period not exceeding three months from the date on which it is established as may be specified in the order.

(6) The last foregoing section shall not apply—

- (a) to a transfer to give effect to the devolution of land on death or bankruptcy or sequestration or under the terms of a settlement, or
- (b) to a transfer in exercise of the rights conferred on a mortgagee heritable creditor or chargee by a mortgage heritable security or charge created before the relevant land came to be in the area of the Board.

(7) If land is transferred in contravention of subsection (1) of the last foregoing section the Board shall be deemed to be authorised to acquire all the estate and interest of the transferor in the land transferred (whether in his hands, or in the hands of persons deriving title under him) by a compulsory purchase order, but any notice to treat given in pursuance of this subsection shall be served within six years from the date of transfer.

"Compulsory purchase order" has the same meaning as in section 49(7) of this Act, and Part IV of Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946 and 1946 c. 49.

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1947 c. 42.

Part IV of Schedule 1 to the Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947 (validity of compulsory purchase orders) shall apply in relation to any notice to treat served in pursuance of this subsection as they apply in relation to a compulsory purchase order.

1961 c. 33.
1963 c. 51.

(8) In assessing compensation in accordance with section 5 of the Land Compensation Act 1961 or section 12 of the Land Compensation (Scotland) Act 1963 (which relate to compulsory purchases of land) no account shall be taken of any depreciation of the value of the relevant interest which is attributable to the provisions of the last foregoing section and this section.

(9) Failure to obtain consent under subsection (1) of the last foregoing section to any transaction shall not invalidate that transaction.

Schemes for
co-ordinated
amalgamations
and reshaping
of agricultural
units.

51.—(1) If it appears to a Rural Development Board that in any part of their area there is a need, for the benefit of the community and for the mutual advantage of those owning and occupying the agricultural land, of a co-ordinated scheme of amalgamations of agricultural land, reshaping of agricultural units and afforestation to be effected by transfers and exchanges of land and grants, surrenders, renunciations and variations of tenancies, the Rural Development Board may proceed to make a scheme under this section.

(2) The scheme—

(a) shall be based on a comprehensive plan for the uses of the land, including afforestation, and

(b) shall be published and made available for inspection in such manner, and with such maps, plans and notes, as the Board consider appropriate,

and the Board shall, in publishing notice of the scheme and in such other ways as appear to them appropriate, invite submissions to the Board on any aspect of the scheme.

(3) The Board shall report to the appropriate Minister on the substance of the submissions made to them on the scheme and the appropriate Minister, after taking that report into consideration, may if he thinks fit direct a public inquiry to be held as regards the scheme.

(4) After taking the Board's report into consideration, together with the report of the person holding the public inquiry, if any, the appropriate Minister shall either reject the scheme or approve it with or without modifications.

(5) If the appropriate Minister approves the scheme, with or without modifications, he shall publish notice of his approval in such manner as appears to him appropriate, and shall direct the Board to seek to negotiate with those concerned for the carrying into effect of the transactions required to implement the scheme.

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(6) The Board shall endeavour to arrive at proposals for a scheme which all concerned will be willing to implement, and for that purpose the Board may carry out all or any of the necessary negotiations for particular transactions, prepare or commission draft agreements, conveyances and other instruments and, by settling terms for inclusion in agreements for sale and other instruments or by drawing up a programme for the carrying out of the transactions, make arrangements for ensuring that the scheme, or any interdependent transactions, cannot be partly fulfilled and partly unfulfilled; and may carry out that and any other preliminary work notwithstanding that, if the scheme is unfulfilled, their expenses may be irrecoverable.

(7) If the appropriate Minister is satisfied—

- (a) that, except for transactions which in all involve the transfer of, or of estates or interests in, land (in this subsection called “the outstanding land”) of an acreage small in comparison with the total acreage of the land affected by the scheme, agreements, enforceable in law, have been made to enter into all the transactions required to implement, or complete the implementation of, the scheme,
- (b) that the Board have entered into agreements, enforceable in law, such that, if they acquired the outstanding land, there would be agreements, enforceable in law, to carry out all the transactions required to implement, or complete the implementation of, the scheme,
- (c) that the terms of the scheme on which the transactions transferring the outstanding land were to be carried out were equitable,

the Board may be authorised by the appropriate Minister to acquire the outstanding land compulsorily, and the Acquisition of Land (Authorisation Procedure) Act 1946 or, as the case may be, the Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947 shall apply as if the Board were a local authority within the meaning of the relevant Act and as if this section were comprised in an Act in force immediately before the commencement of the relevant Act.

(8) In this section “the appropriate Minister” means, in relation to Wales, the Minister of Agriculture, Fisheries and Food and the Secretary of State for Wales acting jointly.

52.—(1) Subject to this section, no person shall plant land in the area of a Rural Development Board with trees except under the authority of a licence granted by the Board.

(2) Subsection (1) above shall not apply—

- (a) to planting by the Forestry Commission,
- (b) so long as the covenant, agreement or scheme in question continues in force, but without prejudice to the

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1967 c. 10.

enforceability of any condition contained in a licence granted before it was entered into or, as the case may be, took effect, to land which is subject to a forestry dedication covenant or agreement as defined in section 5 of the Forestry Act 1967, or the subject of an approved woodlands scheme made under the powers contained in that Act or any enactment repealed by that Act,

- (c) to land which is, or at some time in the period of ten years before the planting has been, woodland,
- (d) to the planting of land of an area not exceeding ten acres, but not so as to permit more than ten acres of land in the ownership of any one person or, where two or more agricultural units are in the same ownership, more than ten acres in each unit, to be planted in any period of twelve months,
- (e) to the planting of fruit trees or to land forming part of an orchard,
- (f) to land forming part of a public open space, or to land which it is not reasonably practicable to put to any beneficial use in its existing state,
- (g) to planting required as a condition imposed on the granting of planning permission under the Town and Country Planning (Scotland) Act 1947 or the Town and Country Planning Act 1962, or as a condition attached to a felling licence granted, or having effect as if granted, under the Forestry Act 1967,
- (h) if the order establishing the Board so provides, to planting carried out during such period not exceeding three months from the date on which it is established as may be specified in the order.

1947 c. 53.

1962 c. 38.

(3) An application for a licence under this section shall be in such form as the Board direct, and on the application the Board may refuse or grant it either with or without conditions; and the Board shall exercise their powers under this section as a means of meeting the problems and needs described in section 45 of this Act in their area.

(4) The Board may in particular grant a licence subject to any condition—

- (a) governing the kinds of trees planted,
- (b) where the licence authorises the planting of a short-term crop, requiring the use of the land for growing trees to be discontinued by the end of a specified period, and requiring before the end of that period the carrying out of such works for the clearing of the land as will make it suitable for agricultural purposes,
- (c) limiting the period within which the planting authorised by the licence is to be carried out,

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- (d) requiring the planting, and any fencing in connection therewith, to be carried out in such a way that access to other land will not be blocked.

(5) A licence under this section shall name the person to whom it is granted, and shall authorise planting by that person only unless it is endorsed by the Board in favour of another; and—

- (a) the Board shall not endorse a licence in favour of any person except with the consent in writing of the person for the time being entitled to its benefit,
- (b) subject to the foregoing paragraph, it shall be the duty of the Board to endorse a licence on the application in writing of a person owning for the time being the same estate or interest in the land to which the licence relates as that owned by the grantee of the licence at the time when it was granted or (by virtue of subsection (12) below) is deemed to have been granted,
- (c) subject to that paragraph, in any other case the Board may grant or refuse an application for endorsement as they think fit.

(6) The Board shall, within two months of receipt of an application duly made for a licence under this section, serve on the applicant, and on all persons other than the applicant who have an estate or interest in the land to which the application relates, other than a minor tenancy, notice of the manner in which the application has been dealt with; and, except where their decision is to grant a licence without any conditions other than a condition requiring the planting which is authorised to be carried out within a period of five years from the grant of the licence, the notice shall give the reasons for their decision.

(7) Within two months of receipt of a notice under subsection (6) of this section, the applicant and any person other than the applicant who has an estate or interest, other than a minor tenancy, in the land to which the notice relates, may appeal to the appropriate Minister against the decision and—

- (a) before determining the appeal the appropriate Minister shall, if either the appellant or the Board so desire, afford to each of them an opportunity of appearing before, and being heard by, a person appointed by the appropriate Minister for the purpose,
- (b) the appropriate Minister may allow or dismiss the appeal, or may reverse or vary any part of the decision of the Board on the application, whether the appeal relates to that part or not, and
- (c) the appropriate Minister shall serve notice of his decision on the appeal on the appellant and on every

PART III

person other than the appellant who has an estate or interest, other than a minor tenancy, in the land to which the appeal relates.

(8) A person who contravenes subsection (1) of this section, or any condition subject to which a licence is granted under this section, shall be liable on summary conviction to a fine not exceeding one hundred pounds.

(9) Where a person is convicted of an offence under the last foregoing subsection the court may, in addition to or instead of inflicting a fine, order him, within the time specified in the order, to take such steps as may be so specified for remedying the matters in respect of which the contravention occurred, and may on application enlarge the time so specified; and if the order is not complied with that person shall be liable on summary conviction to a fine not exceeding ten pounds for each day on which the non-compliance continues.

(10) Proceedings in respect of an offence under subsection (8) of this section may be instituted within six months of the first discovery of the offence by the person taking the proceedings, so, however, that no proceedings shall be instituted in respect of such an offence more than two years after the date of the offence.

(11) A Rural Development Board in granting consent under section 49 of this Act to the transfer of land which in their opinion is land in respect of which an offence has been committed under subsection (8) of this section may impose a condition that the consent shall not take effect until such steps as may be specified by the Board in granting their consent have been taken to remedy the matters in respect of which the alleged contravention occurred, and the conditions so imposed may be varied by the court in exercising its jurisdiction under subsection (9) of this section.

(12) An application for a licence under this section must be sent to the Board by registered post or recorded delivery service, or delivered to the secretary or chief officer of the Board, and if within the period specified in the next following subsection the Board do not notify the applicant of their decision on the application, this section shall have effect as if at the expiration of that period the Board had granted the licence applied for without any conditions other than a condition requiring the authorised planting to be carried out within five years from that date; and it shall be the duty of the Board to grant a licence to the applicant in those terms.

(13) An applicant who has not received a notice as required by subsection (6) of this section may by notice (to be served on the Board in the way required for service of his application)

require the Board to make good their default and the period at the end of which subsection (12) above shall operate shall be the period of fourteen days from the service of that notice.

(14) For the purpose of this section the period of twelve months mentioned in subsection (2)(d) of this section shall, in relation to any land, include a period beginning before the land is within the Board's area.

(15) In this section, unless the context otherwise requires—
“minor tenancy” means a tenancy of less than twelve months;

“public open space” means land laid out as a public garden or used (otherwise than in pursuance of section 193 of the Law of Property Act 1925 or of Part V 1925 c. 20. of the National Parks and Access to the Countryside 1949 c. 97. Act 1949) for the purpose of public recreation, or land being a disused burial ground.

(16) In this section “the appropriate Minister” means, in relation to Wales, the Minister of Agriculture, Fisheries and Food and the Secretary of State for Wales acting jointly.

53.—(1) A Rural Development Board shall prepare and transmit to the appropriate Minister annually a report setting out what has been done in the discharge of their functions under this Act during their financial year last completed, and the appropriate Minister shall lay a copy of the report before each House of Parliament. Boards' annual reports and accounts.

(2) A Rural Development Board shall keep proper accounts and other records in such form as the appropriate Minister may, with the approval of the Treasury, determine.

(3) A Rural Development Board shall prepare and transmit to the appropriate Minister in respect of each of their financial years statements of account in such form as the appropriate Minister may, with the approval of the Treasury, determine, and the appropriate Minister shall transmit them on or before 30th September following the financial year to the Comptroller and Auditor General, who shall examine and certify them and lay copies of them together with his reports thereon before each House of Parliament.

54.—(1) The appropriate Minister, after consultation with a Rural Development Board, may give to the Board such directions of a general character with respect to the performance of any functions of the Board as appear to him to be requisite in the public interest. Directions to Boards by appropriate Minister.

(2) The Minister of Agriculture, Fisheries and Food or, as the case may be, the Secretary of State may, as respects such of a

PART III

Board's books, records and accounts as appear to him to be ones in respect of which, having regard to his relationship with the Board, it is reasonable to give such a direction, direct that they shall be kept available by the Board at all reasonable times for inspection by him or on his behalf or by or on behalf of the Comptroller and Auditor General.

(3) A Board's report for any year under the last foregoing section shall set out any directions given by the appropriate Minister under subsection (1) of this section to the Board during that year, unless the appropriate Minister has notified the Board his opinion that it is against the interests of national security to do so.

(4) It shall be the duty of the Board to comply with any directions given by the appropriate Minister under this section.

(5) In this section "the appropriate Minister" means, in relation to Wales, the Minister of Agriculture, Fisheries and Food and the Secretary of State for Wales acting jointly.

Powers of
entry and
of obtaining
information.

55.—(1) A person duly authorised in writing by a Rural Development Board may, on producing if so required a duly authenticated document showing his authority, enter on any land in the Board's area for the purpose of determining whether, and in what way, any of the functions of the Board should be exercised in relation to the land.

The right of entry under this subsection may be exercised at any reasonable time, but a person shall not demand admission as of right to any land which is occupied unless at least forty-eight hours' notice, or in the case of land occupied for residential purposes at least seven days' notice, of the intended entry has been given to the occupier.

A person who wilfully obstructs any person acting in the exercise of his powers under this subsection shall be liable on summary conviction to a fine not exceeding twenty pounds.

(2) A person leaving any land which he has entered by virtue of the foregoing subsection shall, if the land is unoccupied or the occupier is temporarily absent, leave it as effectively secured against trespassers as he found it.

(3) A Board may by notice served on the owner or occupier of any land in their area, require him to furnish them with such information as may be specified in the notice with regard to the land as the Board may reasonably require for the discharge of such of their functions in relation to the land as may be specified in the notice.

A person who fails without reasonable cause, or neglects, to furnish to the Board within three months after service of

the notice the information specified in the notice shall be liable on summary conviction to a fine not exceeding fifty pounds.

(4) Information obtained under this section shall not be disclosed except—

- (a) with the consent of the person by whom the information was furnished, or
- (b) to a member, officer or servant of the Board or to any person exercising functions on behalf of the Board, or
- (c) to any Minister or to an officer or servant or other person appointed by or exercising functions on behalf of any Minister, or
- (d) for the purpose of any proceedings pursuant to this Part of this Act, or of any criminal proceedings which may be taken whether pursuant to this Act or otherwise, or for the purpose of a report of any such proceedings,

and a person who discloses information in contravention of this subsection shall be liable on summary conviction to a fine not exceeding one hundred pounds or imprisonment for a term not exceeding three months or both, or on conviction on indictment to a fine or imprisonment for a term not exceeding two years, or both.

56.—(1) Sections 45 to 55 of this Act shall not apply in relation to the application of this Part of this Act to the Highlands and Islands, except as provided in this section.

Application of
Part III to
Highlands
and Islands
of Scotland.

(2) Where the Secretary of State is satisfied that the special problems and needs referred to in the said section 45 exist in any area of the Highlands and Islands (including the whole area thereof), he may by order made (so far as applicable) in accordance with the provisions of that section and Part I of Schedule 5 to this Act apply to that area such of the provisions of section 27(1)(c) of this Act and the said sections 45 to 55 as he may think necessary for the purposes of this Part of this Act, and any powers and functions exercisable by a Rural Development Board by virtue of those provisions shall for the said purposes be conferred on the Highlands and Islands Development Board, but without prejudice to their existing powers and functions, and any reference in this Act to a Rural Development Board and to its area shall be construed accordingly.

(3) On the making of an order under this section which applies any of the provisions of sections 49, 50 and 52 of this Act the Secretary of State shall cause such a notice as is mentioned in section 45(9) of this Act to be lodged and made available in accordance with that subsection.

PART III
1965 c. 46.

(4) "Highlands and Islands" in this section has the same meaning as in the Highlands and Islands Development (Scotland) Act 1965.

Supplemental

Interpretation
of Part III.

57.—(1) In this Part of this Act, except where the context otherwise requires—

"amalgamation", "boundary adjustment", "commercial unit", "intermediate unit" and "uncommercial unit" have the same meanings as in Part II of this Act;

"prescribed", in relation to the contents of a scheme, means prescribed by the scheme;

"woodland" includes all land used primarily for the growing of trees.

(2) For the purposes of this Part of this Act land in the area of a Rural Development Board shall be regarded as having been within that area from the date when the Board is established except that, if included by an order varying the Board's area, it shall be regarded as being within that area from the date when that order takes effect.

1947 c. 48

1948 c. 45.

(3) Section 107 of the Agriculture Act 1947 or, as the case may be, section 83 of the Agriculture (Scotland) Act 1948 (manner of service of notice) shall apply to notices required or authorised to be served by a Minister or a Rural Development Board under this Part of this Act.

PART IV

CO-OPERATIVE ACTIVITIES

The Central
Council for
Agricultural
and
Horticultural
Co-operation.

58.—(1) There shall be established a body to be called the Central Council for Agricultural and Horticultural Co-operation (in this Part of this Act referred to as "the Council").

(2) It shall be the function of the Council to organise, promote, encourage, develop and co-ordinate co-operation in agriculture and horticulture, including co-operation and mutual assistance in production, storage, preparation for market, marketing, transport, the provision of buildings, equipment and services for farmers and other producers, research and other incidental activities, and the Council's activities shall include—

(a) the spread of information among producers about the principles and methods of co-operation in the production and marketing of agricultural and horticultural produce, and

(b) research, study and experiments directed to finding and evaluating new or untried ways of applying such principles and methods, and the publication of the results of the research, studies and experiments.

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(3) It shall also be the function of the Council to put themselves in a position to advise the Ministers on all matters relating to co-operation in agriculture and horticulture.

(4) The Council shall consist of—

- (a) not more than six members appointed by the Ministers, and
- (b) eight other members nominated or selected in accordance with subsections (5) and (6) below and appointed by the Ministers.

(5) Subject to subsection (6) below, of the said eight members—

- (a) four shall be persons nominated by such organisations as appear to the Ministers appropriate as representing the interests of farmers and other producers in agriculture and horticulture, and
- (b) four shall be persons nominated by such organisations as appear to the Ministers appropriate as representing the interests of co-operative associations in agriculture and horticulture,

one of each four being a person nominated as representing interests in England, Wales, Scotland and Northern Ireland respectively.

(6) Where the Ministers invite nominations for the purpose of appointing a person to the Council as representing a particular interest, they may specify a time within which nominations are to be made and may, in default of nominations within that time, themselves select for appointment a person appearing to them qualified to represent that interest; and where a nomination is made, but the Ministers decline to make any appointment thereon, they shall invite further nominations.

(7) The Council shall have a chairman and deputy chairman appointed by the Ministers from among the members of the Council appointed under subsection (4)(a) above.

(8) The Ministers shall—

- (a) pay out of money provided by Parliament to the members of the Council such travelling or other allowances as the Ministers, with the approval of the Treasury, may determine, and in the case of any member of the Council as respects whom the Ministers, with the approval of the Treasury, so determine, may pay out of money provided by Parliament such remuneration, whether by way of salary or fees, as the Ministers and the Treasury may determine in his case, and

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(b) in the case of any member of the Council to whom the Ministers, with the approval of the Treasury, determine that this paragraph applies, pay out of money provided by Parliament such pension, or make such payments out of money provided by Parliament toward the provision of a pension, to or in respect of him as the Ministers and the Treasury may determine in his case,

and if a person ceases to be a member of the Council and it appears to the Ministers that there are special circumstances which make it right that that person should receive compensation the Ministers may, with the approval of the Treasury, pay out of money provided by Parliament to that person a sum of such amount as the Ministers may with the approval of the Treasury determine.

(9) The Ministers shall to such extent as may be approved by the Treasury pay out of money provided by Parliament any expenditure incurred or to be incurred by the Council in the performance of their functions.

(10) Schedule 6 to this Act shall have effect with respect to the Council.

Council's
annual
report and
accounts.

59.—(1) The Council shall prepare and transmit to the Ministers annually a report setting out what has been done in the discharge of their functions under this Act during their financial year last completed, and the Ministers shall lay a copy of the report before each House of Parliament.

(2) The Council shall keep proper accounts and other records in such form as the Ministers may, with the approval of the Treasury, determine.

(3) The Council shall prepare and transmit to the Ministers in respect of each of their financial years statements of account in such form as the Ministers may, with the approval of the Treasury, determine, and the Ministers shall transmit them on or before 30th September following the financial year to the Comptroller and Auditor General, who shall examine and certify them and lay copies of them together with his report thereon before each House of Parliament.

Directions to
Council by
Ministers.

60.—(1) The Ministers, after consultation with the Council, may give to the Council such directions of a general character with respect to the performance of any functions of the Council as appear to the Ministers to be requisite in the public interest.

(2) The Ministers may, as respects such of the Council's books, records and accounts as appear to the Ministers to be ones for which, having regard to the Ministers' relationship with

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the Council, it is reasonable to give such a direction, direct that they shall be kept available by the Council at all reasonable times for inspection by or on behalf of the Ministers or of the Comptroller and Auditor General.

(3) The Council's report for any year under the last foregoing section shall set out any direction given by the Ministers under subsection (1) of this section to the Council during that year, unless the Ministers have notified the Council their opinion that it is against the interests of national security to do so.

(4) It shall be the duty of the Council to comply with any directions given by the Ministers under this section.

61.—(1) The Ministers may, in accordance with a scheme made by them with the approval of the Treasury, make out of money provided by Parliament grants in connection with the carrying out by any person of proposals designed to organise, promote, encourage, develop or co-ordinate any form of co-operation in agriculture or horticulture, including co-operation and mutual assistance in production, storage, preparation for market, marketing, transport, the provision of buildings, equipment and services for farmers and other producers, research and other incidental activities.

Grants for purposes connected with co-operative activities.

(2) Grants shall not be made under this section to any associations or bodies whose objects consist of or include supplying goods to their members so far as the grants would assist them, directly and exclusively, in activities connected with the supply of such goods, but that shall not be taken as preventing the making of grants to meet expenditure incurred in research and study directed to promoting or facilitating mergers of such associations or bodies.

The goods referred to in this subsection do not, in the case of any association or body, include agricultural or horticultural produce which has been wholly or mainly produced by members thereof, or anything derived wholly or in part from any such produce.

(3) A scheme under this section—

- (a) shall provide for grant being payable by reference to proposals which have been submitted to and recommended by the Council and approved by the Ministers, which recommendation and approval may be given before or, in such classes of cases as the Ministers may direct, after the carrying out of the proposals,
- (b) may authorise the approval of proposals to be varied or withdrawn by the Ministers with the written consent of the person making the proposals,

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- (c) shall prescribe the functions to be performed by the Council in connection with the administration of the scheme,
- (d) may confer on a person eligible for grant the amount of which depends on the carrying out of works of some kind, or on some other cost, a right to elect to take that cost for purposes of grant as being of such standard amount as may be determined by or under the scheme,
- (e) may authorise the reduction or withholding of grant where assistance in respect of expenditure for which the grant is made is given under any enactment other than this section,
- (f) may make the payment of grant subject to any conditions,
- (g) may contain such incidental and supplemental provisions as appear to the Ministers expedient for the purposes of the scheme,
- (h) may be varied or revoked by a subsequent scheme under this section,
- (i) shall be made by statutory instrument of which a draft has been laid before and approved by resolution of each House of Parliament.

(4) If at any time after the approval of proposals under a scheme under this section, and whether before or after the proposals have been fully carried out, it appears to the Ministers—

- (a) that any condition imposed under a scheme in relation to the proposals has not been complied with, or
- (b) that in connection with the submission of the proposals the person submitting them gave information on any matter which was false or misleading in a material respect,

the Ministers may, on demand made after compliance with subsection (5) below, recover any grant or any part of a grant paid with reference to the proposals, and may revoke the approval in whole or in part.

(5) Before making a demand or revoking an approval under subsection (4) above the Ministers—

- (a) shall give to any person to whom any payment by way of a grant in relation to the proposals would be payable, or from whom any such payment would be recoverable, a written notification of the reasons for the proposed action, and

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- (b) shall accord to each such person an opportunity of appearing before and being heard by a person appointed for the purpose by the Ministers, and
- (c) shall consider the report of a person so appointed and supply a copy of the report to each person who is entitled to appear before the person submitting it.

(6) Proposals in respect of which grant is payable under this section must be submitted to the Council within the period of ten years beginning with the date of the coming into force of this section, but the Ministers may from time to time, by order made by statutory instrument with the approval of the Treasury, of which a draft has been laid before and approved by resolution of the Commons House of Parliament, extend or further extend that period by such additional period, not exceeding five years, as may be specified in the order.

(7) Sums paid by way of grant under this section (including any administrative costs incurred by the Council) shall to such extent as the Ministers may from time to time determine be treated for the purposes of section 3 of the Agriculture Act 1957 c. 57. 1957 (guaranteed prices) as production grants.

(8) Without prejudice to the generality of subsection (1) of this section a scheme under this section may provide for grants for any purpose for which grants may be made under—

- (a) section 1(2) or section 4 of the Horticulture Act 1960, 1960 c. 22.
- (b) section 6 or section 7 of the Agriculture (Miscellaneous Provisions) Act 1963 or, so far as it relates to grants to co-operative bodies, section 9 of that Act,
- (c) section 4 of the Agriculture and Horticulture Act 1964, 1964 c. 28.

and as from such date as may be specified in an order made by the Ministers by statutory instrument the said enactments, other than the said section 9 of the Act of 1963, and in the said section 9(1) the words “or for the formation of bodies carrying on agricultural or horticultural producers’ marketing businesses” shall cease to have effect.

An order under this subsection may specify different dates for different enactments and may contain such savings and exceptions on the repeals made by this subsection as may be specified in the order.

(9) Where before the coming into force of a scheme under this section either of the Ministers, with a view to making a grant out of moneys provided by Parliament, has approved any programme relating to a producers’ marketing business in agriculture, being a programme corresponding to one which, if for horticultural purposes, would be eligible for grant under

PART IV
1964 c. 28.

section 4 of the Agriculture and Horticulture Act 1964, any grant payable in accordance with the terms of the approval after the said date shall be paid out of moneys provided by Parliament.

Supplemental.

1947 c. 48.
1948 c. 45.

62.—(1) In this Part of this Act “agriculture or horticulture” includes everything included in the expression “agriculture” as defined in section 109(3) of the Agriculture Act 1947 or, as the case may be, in section 86(3) of the Agriculture (Scotland) Act 1948.

(2) In the last foregoing section “the Ministers” means the Minister of Agriculture, Fisheries and Food and the Secretary of State, and a scheme under that section may provide that functions under the scheme shall be exercisable by those Ministers separately; and subject to any such provision in a scheme, and except in subsection (9) of that section, that expression in that section shall mean those Ministers acting jointly.

(3) In this Part of this Act, except the last foregoing section, “the Ministers” means the Minister of Agriculture, Fisheries and Food and the Secretaries of State respectively concerned with agriculture in Scotland and Northern Ireland acting jointly.

(4) This Part of this Act extends to Northern Ireland.

PART V

MISCELLANEOUS

Financial
assistance for
certain bodies
making
agricultural
loans.

1956 c. 38.
1958 c. 2

(7 & 8 Eliz. 2).

63.—(1) The amount of the advances which the Minister of Agriculture, Fisheries and Food may make to the Agricultural Mortgage Corporation Limited under section 2 of the Agricultural Mortgage Corporation Act 1956 for the purpose of increasing its guarantee fund shall be increased by seven million pounds, and accordingly in subsection (1) of that section, as amended by the Agricultural Mortgage Corporation Act 1958, for the words “five million pounds” there shall be substituted the words “twelve million pounds”.

1944 c. 28.

(2) The amount of the advances which the Secretary of State may make to the Scottish Agricultural Securities Corporation Limited under section 2 of the Agriculture (Miscellaneous Provisions) Act 1944, as applied by section 8(b) of the said Act, for the purpose of increasing its guarantee fund shall be increased by one million five hundred and seventy-five thousand pounds, and accordingly in paragraph (ii) of the said section 8(b) for the words “four hundred and twenty-five thousand pounds” there shall be substituted the words “two million pounds”.

64.—(1) Section 9 of the Agriculture and Horticulture Act 1964 (grants towards fulfilling guarantees of bank loans to horticulture businesses) shall not apply in relation to any guarantee given after 31st March 1966 (but the provisions of this section shall apply in relation to such guarantees).

PART V

Grants towards fulfilling guarantees of bank loans to agriculture or horticulture businesses.

1964 c. 28.

(2) The Minister may, in such manner and subject to such conditions as he may with the approval of the Treasury determine, make a grant to any person in respect of expenditure incurred by that person in fulfilling a guarantee given by him as security for a loan made in the course of a banking business to a person requiring the loan for the purposes of an agriculture or horticulture business carried on by him, where—

- (a) the guarantee was given during the period of three years beginning on 1st April 1966, or
- (b) the guarantee was given in the year ending on 31st March 1966 and the grant could not be given under the said section 9 of that Act of 1964 and is given after the end of the said year.

(3) The aggregate of sums paid by way of grant under this section or the said section 9 of the Act of 1964 in the year ending on 31st March 1967 shall be subject to a limit of three hundred thousand pounds increased, where the aggregate—

- (a) of sums paid by way of grant under the said section 9 of the Act of 1964 at any time before the end of the last preceding year, together with
- (b) sums paid out of money provided by Parliament by the Minister by way of grant before the coming into force of this section in respect of expenditure incurred in fulfilling guarantees given as security for loans made in the course of a banking business to persons requiring the loans for the purposes of a business which is an agriculture or horticulture business, as defined by this section but not a horticulture business as defined in the said section 9 of the Act of 1964,

fell short of four hundred thousand pounds, by the amount of the difference.

(4) The aggregate of sums paid by way of grant under this section or the said section 9 of the Act of 1964 in the year ending on 31st March 1968 or in any subsequent year shall be subject to a limit of three hundred thousand pounds increased, where the aggregate of sums so paid in the last preceding year falls short of the limit for that year (whether it be the limit under this or the last foregoing subsection), by the amount of the difference or six hundred thousand pounds, whichever is the less.

PART V

(5) Subsection (2) of the said section 9 of the Act of 1964 (which imposes limits on grants under that section) shall not apply to grants made after 31st March 1966.

1957 c. 57.

(6) Sums paid by way of grant under this section shall to such extent as the Ministers may from time to time determine be treated for the purposes of section 3 of the Agriculture Act 1957 (guaranteed prices) as production grants.

(7) The Minister may from time to time, by order made by statutory instrument with the approval of the Treasury, extend or further extend the period mentioned in subsection (2)(a) above by such additional period, not exceeding five years, as may be specified in the order ; but an order under this subsection shall be of no effect unless laid before and approved by resolution of the Commons House of Parliament.

(8) In this section —

“agriculture or horticulture business” means either—

(a) a business which consists, or so much of a larger business as consists, of the producing in the United Kingdom of agricultural or horticultural produce for sale or of the producing in the United Kingdom of agricultural or horticultural produce for sale and its storage, preparation for market or transport, or

(b) the activities of any co-operative association so far as they consist of assisting members in the production in the United Kingdom of agricultural or horticultural produce for sale by the provision of buildings, equipment, facilities or services required in connection therewith, or

(c) a co-operative marketing business ;

“agricultural or horticultural produce” means anything (whether live or dead) produced in the course of agriculture and without prejudice to the generality of that definition the expression “agricultural or horticultural produce” shall include all horticultural produce as defined in section 8(1) of the Horticulture Act 1960 ;

1960 c. 22.

“co-operative marketing business” means a business carried on by a co-operative association and consisting of, or so much of a larger business so carried on as consists of, the storage, preparation for market or marketing, for the sole or primary purpose of assisting members engaged in the production in the United Kingdom of agricultural or horticultural produce for sale, of agricultural or horticultural produce produced by members of the association ;

“co-operative association” means—

PART V

(a) a registered society as defined in section 74 of the Industrial and Provident Societies Act 1965 or 1965 c. 12. a society registered under the Industrial and Provident Societies Acts (Northern Ireland) 1893 to 1963, or

(b) any body which (whether incorporated or not) has a written constitution from which the Minister is satisfied, having regard to any provision as to the manner in which profits of the body are to be applied for the benefit of its members and all other relevant provisions, that the body is in substance a co-operative association;

“the Minister” means the Minister of Agriculture, Fisheries and Food;

“year” means a period of twelve calendar months.

(9) This section extends to Northern Ireland.

65.—(1) With a view to encouraging the keeping of records which will enable persons carrying on any farm business to reach sound decisions on the management of the business, the appropriate Minister may with the approval of the Treasury make to any such person grants out of money provided by Parliament for the keeping to the satisfaction of the appropriate Minister of records of the business containing such information provided in such form as the appropriate Minister may specify, and subject to compliance with conditions laid down by the appropriate Minister.

Grants for keeping farm business records.

(2) Grants under this section shall be in respect of periods of twelve months, or approximately twelve months, and not more than three grants shall be paid to any one person; and for the purposes of this subsection a partnership, a body of trustees or the personal representatives of a deceased person shall be treated as being a single and continuing body of persons distinct from the persons who may from time to time be partners, trustees or personal representatives.

(3) The appropriate Minister may select the cases for payment of grant under this section in such manner as he thinks fit, and—

- (a) may operate this section within a selected area in England or Wales or Scotland or Northern Ireland as the case may be,
- (b) may restrict its operation to selected classes or descriptions of farm business, and
- (c) may require the records to be kept by persons of such descriptions as he may determine.

PART V

(4) An application for grant under this section shall be made before the beginning of the period for which grant is to be made, and no such application shall be made more than five years after the coming into force of this section, but the appropriate Minister may from time to time by order contained in a statutory instrument, of which a draft has been laid before and approved by the Commons House of Parliament, extend or further extend the said period of five years by such additional period, not exceeding five years, as may be specified in the order.

1957 c. 57.

(5) Grants made under this section shall be treated as production grants for the purposes of section 3 of the Agriculture Act 1957.

(6) In this section "farm business" means a trade or business consisting in, or such part of any trade or business as consists in, the carrying out of agricultural operations on land comprised in the business.

(7) Where before the coming into force of this section the appropriate Minister, with a view to making a grant out of money provided by Parliament for purposes corresponding to the purposes of this section, has approved any arrangements which might have been the subject of an application under this section if then in force, any grant payable in accordance with the arrangements after the coming into force of this section shall be paid out of money provided by Parliament.

(8) This section extends to Northern Ireland.

Diseases of
animals.

1950 c. 36.

66.—(1) Without prejudice to the generality of section 4 of the Diseases of Animals Act 1950 (expenditure for eradication of disease), the Ministers shall have power, with the approval of the Treasury, to afford veterinary services, including diagnostic services, whether free of charge or not, to persons who carry on livestock businesses and participate in arrangements approved by the Ministers as being satisfactory arrangements for keeping their stock so far as practicable free from disease and in good health.

(2) The said section 4 shall have effect in relation to poultry as it has effect in relation to animals and section 46 of that Act (which is superseded by the provisions of the said section 4 as so applied) shall cease to have effect.

(3) In this section "the Ministers" means the Minister of Agriculture, Fisheries and Food and the Secretary of State acting jointly, and in this section "disease" shall not be taken as restricted by the definition of that expression in the Diseases of Animals Act 1950.

(4) There shall be paid out of money provided by Parliament any sums required to be so paid in consequence of the provisions of this section.

67.—(1) The minimum rates of wages for workers employed in agriculture which the Agricultural Wages Board has power to fix under section 3(1)(a) of the Agricultural Wages Act 1948 may include minimum rates of wages for periods when a worker so employed is absent in consequence of sickness or injury, and may include them notwithstanding that under the contract of employment no remuneration is payable in respect of any such period.

PART V
Sick pay for
agricultural
workers.
1948 c. 47.

(2) In section 3(7) of the said Act, and paragraph 5 of Schedule 4 to that Act (which authorise—

- (a) the fixing of a minimum rate of wages so that remuneration received is calculated by reference to periods during the currency of employment, and
- (b) alternative provisions applying according to different circumstances arising during the currency of employment)

references to currency of employment shall, in accordance with subsection (1) of this section, include periods of sickness or injury.

(3) An order of the Agricultural Wages Board which fixes minimum rates of wages for periods when a worker is absent in consequence of sickness or injury—

- (a) may treat a period of sickness or injury as being during the currency of employment notwithstanding that the contract of employment has terminated, but not where the contract of employment is terminated by notice given before the commencement of the sickness or the occurrence of the injury,
- (b) may limit the period or periods for which a minimum rate of wages is so fixed in any way, and in particular may relate the period or periods to the duration of the period for which the worker has worked for the employer,
- (c) may make the right to the minimum rate of wages depend on compliance by the worker with any conditions, including in particular conditions as to the production of a medical certificate or other evidence of incapacity for work due to sickness or injury,
- (d) may provide for the times at which, and conditions subject to which, the right to receive wages at the minimum rate is to accrue, and the wages are to become payable,
- (e) may provide for account to be taken, in arriving at the minimum rate of wages, of any benefits payable under the National Insurance Act 1965 or the National Insurance (Industrial Injuries) Act 1965.

1965 c. 51.
1965 c. 52.

PART V

(4) Subsection (1) of this section shall not alter the construction of any order made under the said Act before the passing of this Act.

(5) Section 17 of the said Act shall apply for the interpretation of this section.

(6) In the application of this section to Scotland—

(a) any reference to the Agricultural Wages Board shall be construed as a reference to the Scottish Agricultural Wages Board ;

1948 c. 47.

1949 c. 30.

(b) any reference to the Agricultural Wages Act 1948 shall be construed as a reference to the Agricultural Wages (Scotland) Act 1949 ; and

(c) any reference to paragraph 5 of Schedule 4 to the said Act of 1948 shall be construed as a reference to paragraph 5 of Schedule 3 to the said Act of 1949.

Application of capital money in payment of improvement rentcharges.

1925 c. 18.

1864 c. 114.

1932 c. 35.

68. Section 73(1)(xiii) of the Settled Land Act 1925 (under which capital money arising under that Act may be applied in the redemption of improvement rentcharges) shall, in its application to any charge created under the Improvement of Land Act 1864 in respect of an improvement benefiting agricultural land, and its application by virtue of section 3(3) of the Agricultural Credits Act 1932 to the repayment secured by any mortgage, have effect as if the reference to redemption included a reference to discharging as it falls due so much of any periodical payment as represents repayment of capital.

False statements to obtain grants, etc.

69.—(1) If any person, for the purpose of obtaining for himself or any other person—

(a) any grant under this Act, or any payment under section 12 thereof, or

1940 c. 14.

1944 c. 28.

(b) in England or Wales, any grant under section 15 of the Agriculture (Miscellaneous War Provisions) Act 1940 or section 5 of the Agriculture (Miscellaneous Provisions) Act 1944 (grants in respect of field drainage, improvement of ditches, and the supply of water to agricultural land and farm-houses and cottages), or

1946 c. 73.

(c) any payment under section 13 of the Hill Farming Act 1946 (subsidies for hill sheep and hill cattle), or

1952 c. 62.

(d) any payment under the Agriculture (Calf Subsidies) Act 1952, or

1963 c. 1 .

(e) any grant under section 10(1) of the Agriculture (Miscellaneous Provisions) Act 1963 (winter keep grants),

or for the purpose of inducing the appropriate Minister or a Rural Development Board to make a loan or guarantee under

section 28 or section 47 of this Act, knowingly or recklessly makes a false statement he shall be liable— **PART V**

- (i) on summary conviction to a fine not exceeding one hundred pounds or imprisonment for a term not exceeding three months or both,
 - (ii) on conviction on indictment to a fine or to imprisonment for a term not exceeding two years or both.
- (2) This section extends to Northern Ireland.

70.—(1) In the application in Northern Ireland of section 5(1)(d) of the Agriculture Act 1957 (powers of entry in connection with guaranteed prices) and any order made thereunder before the coming into force of this section, references to authorised officers of the Minister shall include references to authorised officers of the Ministry of Agriculture for Northern Ireland. **Guaranteed prices: minor amendments as respects powers of entry and offences. 1957 c. 57.**

(2) In section 7(3)(b) of that Act (penalty for altering, concealing or defacing a mark applied to produce) the word “removes” shall be added before the words “alters, conceals or defaces”.

- (3) This section extends to Northern Ireland.

PART VI

SUPPLEMENTAL AND GENERAL

71. Where a body corporate is guilty of an offence under this Act, and that offence is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate, or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly. **Offences by bodies corporate.**

In this section “director”, in relation to a body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body corporate.

72.—(1) Parts I to V of this Act, so far as not expressly extended to Northern Ireland by any provision contained in this Act or by any Order in Council under the next following subsection, shall not extend to Northern Ireland; but nothing in this Act shall restrict the powers of the Parliament of Northern Ireland to make laws with respect to any matter with respect to which that Parliament has power to make laws, and any laws **Application to Northern Ireland.**

PART VI

made by that Parliament with respect to any such matters shall have effect notwithstanding anything in any scheme or order under this Act and applicable to Northern Ireland.

(2) Her Majesty may, by Order in Council made under this subsection in pursuance of resolutions passed by the two Houses of the Parliament of Northern Ireland, direct that the provisions of Part III of this Act other than sections 41 to 44 shall extend to Northern Ireland; and any such Order in Council may be varied or revoked by a subsequent Order in Council made under this subsection in pursuance of such resolutions as aforesaid.

(3) While any provisions of Part III of this Act extend to Northern Ireland by virtue of an Order in Council under subsection (2) above those provisions, and any other provision of this Act so far as it relates to those provisions, shall have effect subject to such exceptions, adaptations and modifications as may be specified in the Order.

(4) In the application of any provision of this Act to Northern Ireland any reference to an Act of the Parliament of the United Kingdom shall be construed as a reference to that Act as it applies to Northern Ireland.

(5) Any reference to an enactment of the Parliament of Northern Ireland or to an enactment which that Parliament has power to amend shall be construed as including a reference to that enactment as amended by any Act of that Parliament, whether passed before or after this Act and to any Act of that Parliament passed after this Act and re-enacting that enactment whether with or without modifications.

(6) In any provision of this Act under which a grant or subsidy under this Act may be reduced or withheld where some other relevant grant or subsidy is payable out of money provided by Parliament, references to any such other grant or subsidy shall include references to one payable out of money provided by the Parliament of Northern Ireland.

(7) An Order in Council under this section may contain such transitional and other consequential provisions as appear to Her Majesty to be expedient.

Disqualifica-
tion for
House of
Commons etc.
1957 c. 20.

73. In Part II of Schedule 1 to the House of Commons Disqualification Act 1957 (bodies of which all members are disqualified under that Act), there shall at the appropriate points in alphabetical order be inserted the following entries:—

“The Central Council for Agricultural and Horticultural Co-operation”

“The Meat and Livestock Commission”

“A Rural Development Board”;

and in the Part substituted for the said Part II by section 10 of and Schedule 3 to that Act in its application to the Senate and

House of Commons of Northern Ireland there shall at the appropriate point in alphabetical order be inserted the following entries:—

PART VI

“The Central Council for Agricultural and Horticultural Co-operation”.

“A Rural Development Board in Northern Ireland”.

74.—(1) Any expenses incurred by any Minister under this Act shall be defrayed out of money provided by Parliament. Expenses and receipts of Ministers.

(2) Any sums received or recovered by any Minister in pursuance of this Act or any order made thereunder shall, except as otherwise expressly provided, be paid into the Exchequer.

75.—(1) This Act may be cited as the Agriculture Act 1967. Short title, interpretation, repeals and commencement.

(2) In this Act, unless the context otherwise requires,—

“the appropriate Minister” means, in relation to England and Wales or Northern Ireland, the Minister of Agriculture, Fisheries and Food and, in relation to Scotland, the Secretary of State;

“agriculture”, “agricultural land”, “agricultural unit” and cognate expressions and references to farming shall be construed except in relation to Scotland in accordance with section 109 of the Agriculture Act 1947, and in relation to Scotland, in accordance with section 86 of the Agriculture (Scotland) Act 1948; 1947 c. 48.
1948 c. 45.

“assignment”, in relation to Scotland, means assignation;

“heritable security” has the same meaning as in the Conveyancing (Scotland) Act 1924 except that it includes a security constituted by *ex facie* absolute disposition or assignation, and “heritable creditor” shall be construed accordingly; 1924 c. 27.

“land” includes any estate or interest in land;

“local authority” means, in England and Wales, the council of a county, of a borough, including a county borough and a London borough, the Common Council of the City of London and an urban or rural district council, and, in Scotland, a county council, joint county council of a combined county, town council or district council;

“pension”, in relation to any person, means a pension of any kind whatsoever, whether contributory or not, payable to or in respect of him, and includes a gratuity so payable on his retirement or death, and a return of contributions to a pension fund, with or without interest thereon or any other addition thereto.

PART VI

(3) In this Act references to England and Wales shall be construed as if Wales included Monmouthshire.

(4) References in this Act to the duration of a scheme are references to the period within which applications for approval of proposals qualifying for grant under the scheme must be made, or, in the case of a scheme under section 12 of this Act, applications for subsidy payments must be made; and the provisions of this Act limiting the duration of a scheme shall not prevent a scheme providing different periods for different purposes.

(5) Any reference in this Act to any enactment shall be construed as a reference to that enactment as amended or extended by any other enactment, including this Act, and in this Act "enactment" includes an enactment of the Parliament of Northern Ireland.

(6) Any power of giving directions conferred by this Act shall include a power, subject to the like conditions, to vary or revoke a direction so given.

(7) The Acts mentioned in Schedule 7 to this Act shall be repealed to the extent specified in the third column of that Schedule, but subject to the provisions at the end of that Schedule.

(8) This Act shall come into force on such date as the Minister of Agriculture, Fisheries and Food and the Secretary of State acting jointly may by order contained in a statutory instrument appoint, and orders under this subsection may appoint different dates for different provisions and different purposes.

SCHEDULES**SCHEDULE 1****Sections 1 and 2.****THE MEAT AND LIVESTOCK COMMISSION****PART I****FUNCTIONS**

1.—(1) Promoting greater efficiency in the production of livestock by any means, including those in paragraphs 2 to 6 below, but subject to the exception in sub-paragraph (2) of this paragraph.

(2) In performing their functions under this paragraph and paragraphs 2 to 5 below the Commission shall not concern themselves

(a) with the production of milk or milk products or fleece wool,
or

(b) with the production of dairy cattle,

except so far as matters within paragraphs (a) and (b) above are related to matters (such as the meat-producing characteristics of cattle) which are the Commission's concern, or so far as the Commission concern themselves with matters within paragraphs (a) and (b) above in assisting any Board or other person connected with those matters.

2. Promoting or undertaking arrangements for assessing the breeding qualities of livestock and the management of herds and flocks to which they belong on the basis of information derived from the keeping of records.

3. Promoting or undertaking performance testing, and progeny testing, of livestock, and acquiring and maintaining establishments where such testing may be carried out (whether by the Commission or by any person on their behalf).

4. Promoting or undertaking provision of services of artificial insemination of livestock.

5. Maintaining and publishing registers of cattle and pig herds and sheep flocks appearing to the Commission to be efficiently managed and to conform to the standards specified by the Commission.

6. Promoting the use for breeding purposes of sires of a quality approved by the Commission.

7.—(1) Giving advice and information to the Central Council for Agricultural and Horticultural Co-operation—

(a) on matters relating to the commercial and technical aspects of livestock production and marketing, and

(b) for the purpose of assisting the Council in deciding whether to make grants in aid of co-operative activities in livestock production and marketing.

(2) Giving advice and information to livestock producers on the commercial and technical aspects of introducing and developing co-operative arrangements for the production and marketing of livestock.

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8.—(1) Advising on suitable and fair terms (other than financial terms) of contracts for the sale of livestock and meat, and preparing model or standard terms for inclusion in such contracts.

(2) Giving advice and information to assist buyers and sellers of livestock and meat to make bargains and do business.

9.—(1) Giving advice and information to those owning, conducting or using livestock auction markets on the efficient lay-out, design and operation of such markets, including in particular efficient methods of handling and penning livestock, and generally on matters conducive to efficiency.

(2) Compiling standard codes of practice for any of the activities connected with livestock auction markets with a view to their efficient and equitable operation.

10.—(1) Giving advice and information to those owning, conducting or using slaughterhouses—

(a) on the efficient lay-out, design and operation of slaughterhouses and premises and appliances used in connection with slaughterhouses, and

(b) on efficient techniques of slaughtering of livestock and of dressing carcasses,

and generally on matters conducive to efficiency.

(2) Giving to the Ministers advice and information on any matters connected with slaughterhouses for the purpose of assisting the Ministers to discharge any of their functions, and in particular their functions relating to the licensing of slaughterhouses and to slaughtering charges made at public slaughterhouses.

11.—(1) Disseminating in the livestock industry and livestock products industry information about, and advice based on information about—

(a) the supplies of, and demand and market prices paid for, livestock and livestock products, whether produced in Great Britain or elsewhere, and

(b) market situations and future supply, demand and market prices.

(2) For that purpose—

(a) undertaking the collection of information to supplement that available from official sources about supplies of, and demand and market prices paid for, livestock and livestock products and,

(b) collating, analysing and interpreting official and other information on those subjects.

12. Giving advice and information to the Ministers about current and prospective supplies of livestock and livestock products from all sources.

13. Promoting or undertaking investigations and research as to—

(a) the production, marketing and distribution of livestock,

(b) the production, processing, manufacture, marketing and distribution of livestock products,

SCH. 1

(c) the demand (whether in Great Britain or elsewhere) for livestock and livestock products and connected matters, including prices paid for livestock and livestock products, and disseminating in the livestock industry and the livestock products industry information about, and advice based on, the results of the investigations and research.

14. Collecting the results of investigations and research carried out on any matters relating to the livestock industry or the livestock products industry and disseminating in those industries information about, and advice based on, the results of the investigations and research.

15. Promoting or undertaking arrangements for advertising the merits, and increasing the sales (whether in Great Britain or elsewhere), of livestock and livestock products produced in Great Britain.

16. Disseminating information and advice useful to consumers of livestock products, and in particular information as to their availability, use, identification and choice.

17.—(1) In sections of the livestock industry or livestock products industry for which no industrial training board has been established, encouraging and promoting the training of employees.

(2) Co-operating with the industrial training board for any other section of either industry in the improvement of the training of employees in that section of the industry.

18. Accepting, whether as a trustee or otherwise, responsibility for carrying out any trust for purposes connected with the Commission's functions or the intentions of any person making a gift or bequest for any of those purposes.

19. Giving financial assistance to any person in order to achieve the objects of the Commission.

20. Making available to persons concerned, in a form which does not disclose anything concerning the private affairs of particular persons or undertakings, any information on matters with which the Commission are concerned in the performance of any of their functions, and in particular information collected by the Commission in the performance of their functions.

21. Any functions incidental or ancillary to any of the functions specified above in this Part of this Schedule.

22. The Commission may engage in any form of collaboration or co-operation with other persons in performing any of their functions, and shall enter into such consultations with other authorities and persons as appear to them required to ensure that duplication of research, advisory services and other activities is avoided so far as practicable.

PART II

THE COMMISSION

1. The Commission shall be a body corporate with perpetual succession and a common seal.

2.—(1) It shall be within the capacity of the Commission as a statutory corporation to do such things and to enter into such

SCH. 1 transactions as are incidental or conducive to the performance of any of their functions.

(2) Without prejudice to the generality of sub-paragraph (1) above—

(a) where in the performance of any of their functions the Commission render any services to any person, they may make such charges in respect of those services as may be agreed between the Commission and that person, and

(b) the Commission may borrow money and pledge, mortgage or charge any of their property (including the proceeds of the charges imposed under a levy scheme).

(3) The Commission may, with the consent of the Ministers, delegate any functions conferred on them by Part I of this Act, or a scheme or order under Part I of this Act, but, in the case of a development scheme, only so far as the development scheme so provides.

3. The validity of any proceedings of the Commission shall not be affected by any vacancy among the members of the Commission or by any defect in the appointment or any disqualification of any of the members of the Commission.

4.—(1) Subject to the following provisions of this paragraph, a member of the Commission and the chairman and deputy chairman shall hold and vacate office as such in accordance with the terms of his appointment, and previous tenure of any such office shall not affect eligibility for re-appointment.

(2) If the chairman or deputy chairman ceases to be a member of the Commission, he shall also cease to be chairman or deputy chairman.

(3) A member of the Commission may at any time, by notice in writing addressed to the Ministers or either of them, resign his membership, and the chairman or deputy chairman may, by the like notice, resign his office as such.

5.—(1) A member of the Commission shall, if he is in any way directly or indirectly interested in a contract made or proposed to be made by the Commission, disclose the nature of his interest at a meeting of the Commission as soon as possible after the relevant circumstances have come to his knowledge.

(2) Any disclosure made by a member under the foregoing sub-paragraph shall be recorded in the minutes of the Commission, and that member shall not take part after the disclosure in any deliberation or decision of the Commission with respect to that contract, but may, nevertheless, be taken into account for the purpose of constituting a quorum of the Commission.

6. In the case of an equality of votes at any meeting of the Commission, the person who is chairman at that meeting shall have a second or casting vote.

7.—(1) Subject to paragraphs 5 and 6 of this Part of this Schedule, the Commission may determine their own quorum and procedure and the quorum and procedure of any committee of the Commission.

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(2) Subject to Part III of this Schedule, this paragraph applies in relation to the Production Committee, the Distribution Committee and the Consumers Committee as it applies in relation to any committee set up by the Commission.

8.—(1) The Commission may appoint such officers and servants as the Commission may determine

(2) The Commission shall—

- (a) pay to their officers and servants such remuneration and such travelling or other allowances as they may determine, and
- (b) as to any officers or servants in whose case the Commission may determine to do so, pay to or in respect of them such pensions, or provide and maintain for them such pension schemes, as the Commission may with the approval of the Ministers determine.

9.—(1) It shall be the duty of the Commission, except in so far as the Commission are satisfied that adequate machinery exists for achieving the purposes of this paragraph, to seek consultation with any organisation appearing to the Commission to be appropriate with a view to the conclusion between the Commission and that organisation of such agreements as appear to the parties to be desirable with respect to the establishment and maintenance of machinery for—

- (a) the settlement by negotiation of terms and conditions of employment of persons employed by the Commission, with provision for reference to arbitration in default of such settlement in such cases as may be determined by or under the agreements, and
- (b) the promotion and encouragement of measures affecting the safety, health and welfare of persons employed by the Commission and the discussion of other matters of mutual interest to the Commission and such persons, including efficiency in the discharge of the Commission's functions.

(2) The Commission shall send to the Ministers and to the Minister of Labour a copy of any agreement concluded in pursuance of this paragraph, and of any instrument varying the terms of any such agreement.

10. The application of the seal of the Commission shall be authenticated by the signatures of two members of the Commission and of the chief officer of the Commission or some other person authorised by the Commission to do so in his place.

PART III

THE COMMISSION'S COMMITTEES

The Production Committee

1.—(1) The Production Committee shall consist of a chairman appointed by the Ministers and not less than eighteen other members so appointed.

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(2) The members, other than the chairman, shall be so appointed as capable of representing the interests of—

- (a) cattle and sheep producers,
- (b) pig producers,
- (c) persons employed in livestock production,

and so that each member is appointed by reference to one only of the above paragraphs, and one member at least by reference to each of them.

(3) The Ministers before appointing a person to be a member of the Production Committee as capable of representing the interests of any class of persons shall consult such organisations as appear to them appropriate as representing those interests, taking account of interests in Scotland as well as in England and Wales.

The Distribution Committee

2.—(1) The Distribution Committee shall consist of a chairman appointed by the Ministers and not less than eighteen other members so appointed.

(2) The members, other than the chairman, shall be so appointed as capable of representing the interests of—

- (a) livestock traders,
- (b) livestock auctioneers,
- (c) local authorities operating slaughterhouses and livestock and meat markets,
- (d) persons engaged in animal by-products trades,
- (e) wholesalers of meat and importers of meat (excluding bacon),
- (f) producers of bacon and other edible livestock products except meat,
- (g) retailers of meat and other edible livestock products,
- (h) persons employed in the marketing and distribution of livestock or the production, processing, manufacture, marketing and distribution of livestock products,

and so that each member is appointed by reference to one only of the above paragraphs, and one member at least by reference to each of them.

(3) The Ministers before appointing any person to be a member of the Distribution Committee as capable of representing the interests of any class of persons shall consult such organisations as appear to them appropriate as representing those interests, taking account of interests in Scotland as well as in England and Wales.

The Consumers Committee

3. The Consumers Committee shall consist of a chairman appointed by the Ministers and nine other members, and of those nine other members—

- (a) six shall be persons appointed by the Ministers as capable of representing the interests of consumers,
- (b) three shall be members of either the Production Committee or of the Distribution Committee and shall be appointed by the Commission.

*Chairmen of Production, Distribution and Consumers
Committees*

SCH. 1

4.—(1) The chairman of the Production Committee, of the Distribution Committee and of the Consumers Committee shall each be a member of the Commission.

(2) If the chairman of any of those Committees ceases to be a member of the Commission he shall also cease to be the chairman, and a member, of the Committee.

Joint Committees

5.—(1) A joint committee shall consist of one or more members of the Production Committee, and one or more members of the Distribution Committee, with or without any number of other members, and need not have any members who are members of the Commission.

(2) All the members of a joint committee shall be appointed by the Commission and the Commission may, subject to sub-paragraph (1) above, vary the constitution of a joint committee or dissolve it.

(3) A joint committee shall have a chairman appointed by the Commission from among the members of the joint committee.

(4) The Commission shall consult the Production Committee and the Distribution Committee as to the composition of any joint committee set up by the Commission.

Payment of members of committees

6. The Commission—

(a) may pay to members of the Production Committee, the Distribution Committee, the Consumers Committee and any other of the Commission's committees such remuneration as they may, with the approval of the Ministers and the Treasury, determine, and

(b) shall pay to members of any of those committees such travelling or other allowances as the Ministers may, with the approval of the Treasury, determine.

Procedure

7. Paragraphs 3, 4 and 5 of Part II of this Schedule shall apply in relation to the said three Committees and paragraphs 3, 4(1)(2) and 5 of the said Part II shall apply in relation to a joint committee or any other of the Commission's committees as those paragraphs apply in relation to the Commission.

SCHEDULE 2

Section 9.

SUPPLEMENTARY PROVISIONS WITH RESPECT TO DEVELOPMENT
SCHEMES

Procedure for making development schemes

1.—(1) At least fifty-six days before submitting a development scheme to the Ministers the Commission shall cause to be published in the London Gazette and the Edinburgh Gazette and in such other

SCH. 2 manner as they think best adapted for informing persons affected, a notice of the Commission's intention to do so—

- (a) specifying the place where the draft scheme may be inspected and copies thereof obtained, and the price (being a price approved by the Ministers) at which such copies will be supplied ; and
- (b) stating that the Commission are prepared to receive and consider any objection to the proposed scheme which may be made to the Commission in writing within such period after the date of the publication of the notice, not being less than fifty-six days, as may be specified in the notice.

(2) If any objection duly made is not withdrawn the Commission shall afford to the objector an opportunity of appearing before and being heard by a person appointed by the Commission for the purpose.

(3) The Commission shall, before submitting the development scheme, take into consideration any such objection and the report of the person before whom any objector appeared.

2.—(1) The Commission shall not submit to the Ministers a development scheme which differs from the draft scheme available for inspection under paragraph 1 above except as respects the correction of minor defects or errors.

(2) The foregoing sub-paragraph shall be without prejudice to the preparation by the Commission of a further draft scheme, and a notice under paragraph 1 above as respects such a scheme—

- (a) shall give particulars of the respects in which it differs from the previous draft scheme, and
- (b) shall state that objections to the proposed scheme are restricted to objections to or arising out of the changes, as compared with the previous scheme.

3. When submitting any development scheme to the Ministers, the Commission shall transmit to them any objection thereto which has been duly made to the Commission and has not been withdrawn, and the report of the person before whom any objector appeared.

4.—(1) After considering any objections and any report so transmitted to them, the Ministers may proceed to make a draft order confirming the scheme and, subject to the following provisions of this paragraph, they may make it with any modification which appears to them expedient.

(2) Except where the Ministers are satisfied that on any hearing afforded under this Schedule all persons who might reasonably be expected to require an opportunity of making an objection to the modification have had sufficient notice of the possibility of the modification being made, and of objecting to it, the Ministers shall not make the draft order with the modification until they have taken such steps as appear to them appropriate for bringing the modification to the notice of those persons and affording them the opportunity of

making objections, and appearing at a hearing, which they would have had if the original scheme had incorporated the modification.

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(3) The draft order confirming any scheme shall set out the scheme.

Confirmation of development scheme by order

5.—(1) If the Ministers are satisfied that the bringing into force of a development scheme submitted to them will conduce to the better organisation, development or regulation of any section of the livestock industry or the livestock products industry, and that it is expedient that the development scheme should have effect, then, subject to the following provisions of this paragraph, they may if they think fit confirm the development scheme by order made by statutory instrument.

(2) The Ministers shall not make an order confirming a development scheme if it appears to them that the effect of the development scheme will or may be such as to conflict with any objectives adopted by any Ministers in making any order under Part I of the Agriculture Act 1957 (guaranteed prices and assured markets). 1957 c. 57.

(3) The Ministers shall not make an order confirming a development scheme unless a draft of the order has been laid before and approved by a resolution of each House of Parliament.

Coming into force of development scheme

6. A development scheme shall come into force on such date as may be specified in the order confirming the development scheme, being a date after the latest date on which either House of Parliament resolves that the draft order be approved.

Proceedings questioning validity of a development scheme

7.—(1) Within six months from the making of an order confirming a development scheme any person may apply to the High Court on the ground that any provision contained in the development scheme is invalid as not being authorised by section 9 of this Act, or that there has been a failure to comply with any requirement of this Act as to the procedure for the making of a development scheme or the order confirming it, and on the application the High Court—

- (a) may by interim order suspend the operation of the development scheme (either generally or in so far as it affects the applicant) until the final determination of the proceedings,
- (b) if satisfied that on the grounds given in the application any provision contained in the development scheme is invalid, or that on those grounds the interests of the applicant have been substantially prejudiced by a failure to comply with any requirements as to procedure, may quash the development scheme or any provision contained in it either generally or in so far as it affects the applicant or any class of persons which includes the applicant, and
- (c) may, in quashing the development scheme or any provision contained in it, make such provision for consequential and incidental matters as appears to the court to be necessary

SCH. 2

or expedient, including provision as to the degree to which the decision is to affect things already done under the development scheme,

and subject to the foregoing provisions of this paragraph the validity of a development scheme shall not be questioned in any legal proceedings whatsoever.

(2) In relation to Scotland, any reference in this paragraph to the High Court shall be construed as a reference to the Court of Session.

Ministers' powers to revoke or direct variation of a development scheme

8. If the Ministers are satisfied—

- (a) that a development scheme is not serving the purposes for which it is made, or
- (b) that the continued operation of a development scheme would be contrary to the public interest, or
- (c) that a development scheme is unduly prejudicial to the interests of any class of persons affected by the scheme,

the Ministers may by order made by statutory instrument, of which a draft has been laid before and approved by resolution of each House of Parliament, revoke the development scheme or, in a case under paragraph (c) above, direct the Commission to submit to them a further development scheme containing such provisions as appear to the Commission appropriate for mitigating the effect of the earlier development scheme on the interests of the class of persons in question.

An order under this paragraph may contain such supplemental and incidental provisions, including transitional provisions, as appear to the Ministers to be expedient.

Sections 26, 28,
29 and 48.

SCHEDULE 3

CONDITIONS APPLYING TO AMALGAMATED AGRICULTURAL UNITS

Duration of conditions, and incorporation in leases, tenancies, etc.

1. For a period of forty years from the time when the provisions of this Schedule first apply to a unit of land (but without prejudice to its application when its provisions come to apply to any part of that land on any other occasion) the conditions specified in this Schedule shall be observed as regards the unit and shall, so far as applicable, be deemed to be part of the terms of any lease, agreement for lease or tenancy of the unit of land, or any part of it, and shall be enforceable accordingly.

Registration of conditions

2.—(1) When the conditions so specified first come to apply to a unit of land in England and Wales notice of that fact shall be registered in the register of local land charges by the proper officer of the local authority (not being a county council) in the area in which the unit of land, or any part of it, is situated, and shall be so registered in the prescribed manner.

(2) In relation to the unit of land within sub-paragraph (1) above, the provisions of section 15(1) of the Land Charges Act 1925 (which make an unregistered charge void in certain circumstances) shall apply as if the conditions were a charge required to be registered under that subsection, and the other provisions of that Act, including in particular section 17(3) (which relates to the conclusive effect of a certificate of search) shall have effect accordingly. SCH. 3
1925 c. 22.

(3) It shall be the duty of the appropriate Minister to give to the local authority's officer the information necessary to enable him to comply with this paragraph.

(4) Where the conditions specified in this Schedule first come to apply to a unit of land in Scotland, the Secretary of State shall cause to be recorded in the General Register of Sasines a notice of that fact; and where the conditions cease to apply as aforesaid the Secretary of State shall cause to be recorded in the General Register of Sasines a notice stating that the conditions no longer apply to that unit of land.

(5) The conditions applied to a unit of land under this Schedule shall be included among the matters which are required to be registered in the Statutory Charges Register in Northern Ireland and accordingly the following paragraph shall be added to section 2(1) of the Statutory Charges Register Act (Northern Ireland) 1951— 1951 c. 3
(N.I.).

“(x) the conditions applied to a unit of land under the Third Schedule to the Agriculture Act 1967”.

Condition restricting transfers without Minister's consent

3.—(1) It shall be a condition that, except with the written consent of the appropriate Minister, no person shall transfer to any other a part only, or any estate or interest in a part only, of the land comprised in the unit.

(2) References in this paragraph to the transfer of land, or of an estate or interest in land, include references to devolution on death or under the terms of a settlement and the High Court may, on the application of a person affected by this sub-paragraph, vary the way in which property is to devolve on a death or under a settlement so that there is no breach of the conditions specified in this paragraph but, subject to that, so that the persons interested in the unit of land, including those to whom property would devolve on the death or under the settlement, so far as required to surrender any interest in the unit of land, are compensated by receiving part of the proceeds of sale of the land or in any other way.

(3) References in this paragraph to the transfer of land, or an estate or interest in land—

- (a) include, subject to paragraph (b) below, references to transfer by way of the creation or assignment of a lease, agreement for a lease or tenancy, including in each case a sublease or sub-tenancy,
- (b) do not include references to the granting or assignment of any right of occupation the grant of which is made (whether or not expressly to that effect) in contemplation of the use of the land only for grazing or mowing during some specified period of the year, and, without prejudice to the fore-

SCH. 3

going words, in Northern Ireland do not include references to the transfer or assignment of any rights arising by virtue of a conacre agreement,

- (c) do not include references to any reconveyance or other transaction by way of discharge of a mortgage, heritable security or charge, or of the release or disburdening of any land from a mortgage, heritable security or charge.

(4) The application of this paragraph to any transaction shall not invalidate that transaction, but this sub-paragraph shall not be taken as affecting the terms written into a lease, agreement or tenancy by paragraph 1 of this Schedule.

Condition restricting non-agricultural use without Minister's consent

4. It shall be a condition that, except with the written consent of the appropriate Minister, the whole of the unit of land shall at all times be used for agricultural purposes.

Condition requiring giving of information

5. It shall be a condition that the owner of the unit of land shall, on being required so to do by the appropriate Minister, certify that the conditions in paragraphs 3 and 4 above are being observed with respect to the unit of land, and any tenant of the unit of land shall, on being so required in writing by the owner, furnish to him such information as he may reasonably require for the purpose of enabling him to comply with this condition.

Powers of Minister on giving consent

6.—(1) The appropriate Minister—

- (a) may, when giving his consent under paragraph 3 or paragraph 4 above, direct that the conditions, or any of them, specified in this Schedule shall cease to be applicable to the unit of land, or to any part thereof specified in the direction, or

(b) may give his consent under either of those paragraphs subject to the condition that this Schedule shall apply to such different unit of land as may be specified in the condition, but shall, before exercising the power conferred on him by paragraph (b) of this sub-paragraph first satisfy himself that all persons who will have an estate or interest in the unit of land to which this Schedule is so applied are parties to the application for consent.

(2) The appropriate Minister may give his consent under either of those paragraphs subject to payment to him of all or any part of the amount which would be payable under paragraph 7(1)(a) below on a breach of the condition to which the application relates by the applicant.

Breach of condition

7.—(1) A person by whom the condition specified in paragraph 3 or paragraph 4 above is breached as respects any unit of land shall be liable to pay to the appropriate Minister—

SCH. 3

- (a) an amount equal to the relevant Exchequer payments, together (except in the case of relevant Exchequer payments representing a loan or interest on a loan) with interest until payment from such date, not being earlier than the relevant date, and at such rate, as may be determined by the appropriate Minister with the approval of the Treasury, and
- (b) subject to sub-paragraph (2) below, an additional amount equal to so much of the value of the unit, when subject to the conditions imposed by this Schedule, as is attributable to the land which is the subject of the breach,

and the amount which that person is liable to pay under this sub-paragraph shall be a charge on all the estate and interest in the land comprised in the unit which he had at the time of the breach, binding him and his successors in title.

(2) The additional amount payable by virtue of sub-paragraph (1)(b) above shall not exceed—

- (a) the amount by which the value of the land which is the subject of the breach, when freed from all conditions under this Schedule, exceeds the value attributable thereto as mentioned in that sub-paragraph, or
- (b) one thousand pounds,

whichever is the greater, taking, where the breach consists of a sale of land, the value of what is sold, when freed from all conditions under this Schedule, as not less than the purchase price.

(3) Before commencing proceedings against any person to enforce the liability imposed on him by, or the charge arising under, sub-paragraph (1) above, the appropriate Minister shall serve on him a notice specifying the condition alleged to have been breached and, if it is the condition relating to use, the nature of the use constituting the breach; and, unless within two months of the service of the notice that person has—

- (a) admitted in writing the breach and his liability in respect thereof or, as the case may be, the breach and the existence of the charge, and
- (b) agreed in writing the amount recoverable by virtue of paragraph (b) of that sub-paragraph,

the matter or matters still in issue shall be determined by arbitration.

(4) Section 77 of the Agricultural Holdings Act 1948 (procedure for arbitrations) shall have effect as if any such matter were one required by that Act to be determined by arbitration under that Act.

(5) Sections 75 and 77 of the Agricultural Holdings (Scotland) Act 1949 (provisions regarding arbitrations) shall have effect as if any question in sub-paragraph (3) above were a matter required by that Act to be determined thereunder; and sections 78 and 87(2) of that Act shall have effect as if the parties to the dispute were the landlord and tenant of an agricultural holding.

(6) For the purposes of the Limitation Act 1939, no cause of action or right to receive money shall be deemed to have accrued to the appropriate Minister by virtue of sub-paragraph (1) above

SCH. 3 until the date on which he served the notice referred to in sub-paragraph (3) above.

(7) If a breach of either of the said conditions constitutes a breach of the terms of any lease, agreement for a lease or tenancy (whether written in by paragraph 1 of this Schedule or not) any person who is or was at any time entitled under the lease, agreement or tenancy to enforce those terms, or to exercise by forfeiture or otherwise any sanction for their breach, shall be liable to pay to the appropriate Minister the amounts specified in sub-paragraph (1) above so far as not recovered from any other person unless he shows to the satisfaction of the court in which proceedings for recovery are taken against him that he has, in exercise of those rights, taken all reasonable steps to prevent the breach, and to make good the results of the breach.

(8) On the receipt by the appropriate Minister of all sums due to him under this paragraph in consequence of a breach or, if he accepts a lesser amount in satisfaction of those sums, on the giving by him of a written discharge therefor, the conditions specified in this Schedule, so far as applied by reference to the relevant Exchequer payments taken into account in arriving at those sums or by reason of the making of any grant under section 27(1)(a) of this Act, shall cease to be applicable to the unit of land.

(9) A person shall not be liable to pay any part of the relevant Exchequer payments both under this Schedule and under some other provision of this Act, or where he has already become so liable by reason of a previous breach of condition.

8. If the appropriate Minister is satisfied that a breach of any of the conditions specified in paragraph 3 or 4 above is capable of being remedied he may, subject to any conditions he may impose, direct that the operation of the last foregoing paragraph shall in relation to the breach be suspended for such period as appears to him to be necessary for enabling the breach to be remedied, and if the breach is remedied to his satisfaction within that period he shall direct that the last foregoing paragraph shall not apply to the breach.

Supplementary

9. In this Schedule "owner", in relation to any land other than in Scotland, means a person, other than a mortgagee not in possession, who is entitled to receive the rack rent of the land or, where the land is not let at a rack rent, would be so entitled if it were so let; and in relation to any land in Scotland, means a person who for the time being is entitled to receive, or would, if the land were let, be entitled to receive, the rent of the land, including a trustee, tutor, curator, factor or agent.

10. In relation to land which is subject to the provisions of the Crofters (Scotland) Acts 1955 and 1961, or of the Small Landholders (Scotland) Acts 1886 to 1931, "agricultural purposes" shall, for the purposes of this Schedule, include any subsidiary or auxiliary occupation permitted by paragraph 3 of Schedule 2 to the Crofters (Scotland) Act 1955 or by section 10 of the Small Landholders (Scotland) Act 1911 as the case may be.

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11. In relation to Scotland, any reference in this Schedule to the High Court shall be construed as a reference to the Court of Session ; and in paragraph 7(1) for the words from "and the amount" to the end of the sub-paragraph there shall be substituted the words "and the appropriate Minister may make an order in favour of himself providing and declaring that the land comprised in the unit shall be charged and burdened with an annuity to pay the amount which that person is liable to pay under this sub-paragraph, and the provisions of section 16 of and paragraphs 2 to 8 of Schedule 6 to the Building (Scotland) Act 1959 shall apply in relation to any such order as they apply in relation to a charging order within the meaning of that Schedule."

1959 c. 24.

12. In relation to Northern Ireland—

(a) any reference in this Schedule to the High Court shall be construed as a reference to the High Court of Justice in Northern Ireland ;

(b) in paragraph 7(3) above, for the words "determined by arbitration" there shall be substituted the words "referred to and determined by the Lands Tribunal for Northern Ireland" ;

(c) paragraph 7(4) and (5) above shall be omitted ;

(d) for any reference to the Limitation Act 1939 there shall be substituted a reference to the Statute of Limitations (Northern Ireland) 1958.

1939 c. 21.
1958 c. 10
(N.I.).

SCHEDULE 4

Section 30.

IMPROVEMENTS ELIGIBLE FOR GRANT

1. Erection, alteration, enlargement or reconditioning of permanent farm buildings (other than dwelling-houses), and making or improvement of permanent yards, loading banks and stocks.

2. Provision of means of sewage disposal other than from dwelling-houses.

3. Making and improvement of roads, fords, bridges, railway crossings and creeps.

4. Provision or laying-on of electric light or power, or gas, to farms for agricultural purposes.

5. Provision and improvement of pens and other fixed equipment for use in connection with the sheltering, gathering, marking, dipping, spraying, treatment or feeding of sheep and cattle.

6. Construction and improvement of silos, and the provision of means of disposal of effluent from silos.

7. Erection of wirework for hop gardens.

8. Making and improvement and renewal (but not repair) of permanent fences (including hedges), walls and gates.

9. Provision of cattle-grids.

10. Reclamation of waste land.

11. Provision of shelter belts.

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12. Removal of hedges and banks, filling in of ditches, removal of boulders, tree roots and other like obstructions to cultivation.

13. Protection and improvement of river banks.

14. Land levelling work, including filling in ponds and depressions which impede cultivation.

15. Claying and marling.

16.—(1) Subject to sub-paragraph (2) below, the provision and installation of fixed plant or machinery (including fixtures and fittings) for agricultural purposes, other than plant or machinery which has been used before installation or which is installed in, or is wholly or partly for the benefit of, a dwelling-house.

(2) This paragraph shall only apply where the fixed plant or machinery is provided by way of additional facilities or to afford greater capacity, or where the plant or machinery is required in connection with the introduction of a new system of management.

17. Any operation incidental to any of the operations specified in the other paragraphs of this Schedule or necessary or proper in carrying it out or securing the full benefit thereof.

Section 45.

SCHEDULE 5

RURAL DEVELOPMENT BOARDS

PART I

PROCEDURE FOR ESTABLISHING A BOARD

Order establishing a Board

1.—(1) The area of a Rural Development Board, and the date on which it is to be established, shall be fixed by an order made by the appropriate Minister by statutory instrument of which a draft has been laid before and approved by a resolution of each House of Parliament.

(2) The order shall specify the Board's area by reference to a map attached to, or deposited in a place recorded in, the order.

(3) The appropriate Minister shall fix the boundaries of the area having regard primarily to natural conformations, features and boundaries, and only secondarily to the boundaries of the areas of local authorities and other public bodies, or to the boundaries of the area of particular agricultural units or other holdings of the land.

(4) The area may consist of two or more separate tracts of land, and land which is part of the area may totally enclose land which is not.

Procedure for making order

2.—(1) The appropriate Minister shall, after consultation with such local authorities and other public bodies as appear to him to have an interest in the matter, publish notice of his proposals to establish a Rural Development Board, and of the Board's proposed area, in two successive weeks in one or more local newspapers circulating in that area.

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(2) The notice shall—

- (a) name one or more places in or near the proposed area where copies of a draft of the order (including the map) may be inspected,
- (b) describe, with such degree of detail as is reasonable in a notice published in a newspaper, the boundaries of the proposed area, and
- (c) draw attention to the provisions of this Schedule authorising the making of objections, and specify the time (not being less than twenty-eight days from the first publication of the notice) within which and the manner in which objections can be made.

3. The grounds on which an objection may be made shall be—

- (a) that a proposed boundary ought to be altered so as to exclude part of the proposed area on the ground that there are no problems or needs of the kind described in section 45 of this Act in that part of the area, and that there are no other considerations which justify the inclusion of that part,
- (b) that a proposed boundary ought to be altered by including an additional area on the ground that there are in it problems or needs of the kind described in section 45 of this Act, or that there are other considerations which justify the inclusion of that additional area,
- (c) that a proposed boundary ought to be altered (whether bringing land in or taking it out or both) so as better to conform to natural conformations, features and boundaries,
- (d) that land within the proposed area and contiguous to a proposed boundary of that area ought to be excluded because not forming a natural part of a tract of agricultural or forestry land or of land suitable for agricultural or forestry purposes, or that land outside the proposed area and contiguous to a proposed boundary of the area ought to be included for the converse reasons,
- (e) that a proposed boundary divides an agricultural unit or other land in one ownership or one occupation,
- (f) that a proposed boundary should be adjusted so that land over which access is required to land included in the proposed area is also within the proposed area.

4.—(1) If no objection is duly made or if all objections so made are withdrawn, the appropriate Minister may make the proposed order in the form proposed.

(2) If any objection duly made is not withdrawn the Minister shall either cause a public local inquiry to be held or afford to any person by whom any objection has been duly made and not withdrawn an opportunity of appearing before and being heard by a person appointed by the appropriate Minister for the purpose.

(3) If any person by whom an objection has been made avails himself of the opportunity of being heard the appropriate Minister

SCH. 5 shall afford to any other persons to whom it appears to him expedient to afford it an opportunity of being heard on the same occasion.

(4) After considering any objections duly made and not withdrawn, and the report of the person who held the inquiry or hearing under this paragraph, the appropriate Minister may proceed to make the proposed order and, subject to the following provisions of this paragraph, may make it with such modifications as appear to him expedient.

(5) Except where the appropriate Minister is satisfied that on the inquiry or hearing all persons who might reasonably be expected to require an opportunity of making an objection to the modification have had sufficient notice of the possibility of the modification being made, and of objecting to it, the appropriate Minister shall not make the order with the modification until he has taken such steps as appear to him appropriate for bringing the modification to the notice of those persons and affording them an opportunity of making the objections, and appearing at a local inquiry or hearing, which they would have had if the original proposal had incorporated the modification.

(6) The decision of the appropriate Minister on the question whether an objection falls within paragraph 3 of this Schedule shall be conclusive but he shall give a written notice to the objector of any adverse decision stating the reasons for his decision.

5. As soon as may be after the appropriate Minister has made the order the appropriate Minister shall publish in one or more local newspapers circulating in or near the area specified in the order a notice describing the area, stating that the order has been made and naming a place where a copy of the order (including the map) may be inspected at all reasonable hours.

Orders varying Board's area or dissolving a Board

6.—(1) The appropriate Minister may by order by statutory instrument subject to annulment in pursuance of a resolution of either House of Parliament—

(a) vary a Board's area, or

(b) dissolve a Board.

(2) Before making an order under sub-paragraph (1)(a) above the Minister shall comply with the procedure in paragraphs 2 to 5 above, but as if in paragraphs 2 and 3 for references to the proposed boundary of the area there were substituted references to the parts of the boundary as proposed to be altered, and with any other necessary modifications.

(3) An order under sub-paragraph (1)(b) above may contain such consequential and incidental provisions as appear to the Minister expedient, including provisions for the disposal of the property of the dissolved Board, and transitional provisions in respect of anything done by the Board before its dissolution.

Supplemental

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7.—(1) Paragraphs 15 and 16 of Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946 or, as the case may be, to the Acquisition of Land (Authorisation Procedure) (Scotland) Act 1947 (validity of compulsory purchase orders) shall with the necessary modifications (and in particular with the substitution for references to that Act and that Schedule, other than references to particular provisions of that Act or Schedule, of references to this Act and this Schedule) apply in relation to an order made under this Schedule as they apply in relation to compulsory purchase orders. 1946 c. 49. 1947 c. 42.

(2) Paragraph 19 of the said Schedule shall apply in relation to notices required or authorised to be served by the appropriate Minister under this Schedule with the necessary modifications, and in particular with the substitution of the appropriate Minister for the Minister mentioned in the said paragraph 19(4).

(3) Subsections (2) to (5) of section 290 of the Local Government Act 1933 (giving of evidence and costs in public local inquiries), and subsections (4) to (9) of section 355 of the Local Government (Scotland) Act 1947 (provisions as to local inquiries) shall apply to a public local inquiry held in pursuance of this Schedule, as if the Minister there mentioned were the appropriate Minister. 1933 c. 51. 1947 c. 43.

PART II

CONSTITUTION AND PROCEDURE OF BOARDS

1.—(1) A Rural Development Board shall consist of not less than six nor more than twelve members appointed by the appropriate Minister of whom more than half shall be appointed as having had experience of, and shown capacity in, or otherwise as having special knowledge of, agriculture or forestry.

(2) The Board shall have a chairman and deputy chairman appointed by the appropriate Minister from among the members of the Board.

(3) The Board shall pay to the members of the Board such travelling or other allowances as the appropriate Minister, with the approval of the Treasury, may determine, and in the case of any member of the Board as respects whom the appropriate Minister, with the approval of the Treasury, so determines—

- (a) may pay such remuneration, whether by way of salary or fees, as the appropriate Minister and the Treasury may determine in his case, and
- (b) may pay such pension, or make such payments towards the provision of a pension, to or in respect of him as the appropriate Minister and the Treasury may determine in his case,

and if a person ceases to be a member of a Board and it appears to the appropriate Minister that there are special circumstances which make it right that that person should receive compensation, the Board may, with the approval of the Treasury, pay to that person a sum of such amount as the appropriate Minister may with the approval of the Treasury determine.

SCH. 5 2. A Board shall be a body corporate with perpetual succession and a common seal.

3.—(1) It shall be within the capacity of a Board as a statutory corporation to do such things and to enter into such transactions as are incidental or conducive to the performance of any of its functions, but they shall not borrow money without the appropriate Minister's written consent.

(2) Without prejudice to the generality of sub-paragraph (1) above, where in the performance of any of their functions a Board render any services to any person they may make such charges in respect of those services as may be agreed between a Board and that person.

4. The validity of any proceedings of a Board shall not be affected by any vacancy among the members of a Board or by any defect in the appointment or any disqualification of any of the members of a Board.

5.—(1) Subject to the following provisions of this paragraph, a member of a Board and the chairman and deputy chairman shall hold and vacate office as such in accordance with the terms of his appointment, and previous tenure of any such office shall not affect eligibility for re-appointment.

(2) If the chairman or deputy chairman ceases to be a member of a Board, he shall also cease to be chairman or deputy chairman.

(3) A member of a Board may at any time, by notice in writing addressed to the appropriate Minister, resign his membership, and the chairman or deputy chairman may, by the like notice, resign his office as such.

6. If the appropriate Minister is satisfied that a member of a Board—

(a) has become bankrupt or made an arrangement with his creditors ;

(b) is incapacitated by reason of physical or mental illness ;

(c) has been absent from meetings of the Board for a period longer than three consecutive months without the permission of the Board ; or

(d) is otherwise unable or unfit to discharge the functions of a member, or is unsuitable to continue as a member,

the appropriate Minister shall have power to remove him from his office as a member of that Board.

7.—(1) If a member of a Board has any pecuniary interest, direct or indirect, in any contract or proposed contract or other matter, and is present at a meeting of that Board at which the contract or other matter is the subject of consideration, he shall disclose the fact as soon as practicable after the commencement of the meeting, and shall not take part in the consideration or discussion of, or vote on, any question with respect to the contract or other matter, but he may nevertheless be taken into account for the purpose of constituting a quorum of that Board for any such consideration of, or decision on, the contract or other matter :

Provided that this sub-paragraph shall not apply to any interest which a member may have—

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- (a) as an inhabitant of the Board's area, or the owner of an estate or interest in land in that area, or
- (b) as an applicant or prospective applicant for any consent, licence, grant or loan,

being an interest which he has in common with all other such inhabitants, owners, applicants or prospective applicants, or with any class thereof; and provided also that the chairman at any meeting, may, at his discretion, permit a member to take part in the consideration or discussion of any question (but not to vote thereon) notwithstanding that the member has an interest to which this sub-paragraph applies, but subject to such restrictions as the chairman may think it right to impose.

(2) A general notice given in writing by a member of a Board to the officer designated by that Board for the purpose to the effect that he is a member or in the employment of a specified company or other body, or that he is a partner or in the employment of a specified person, shall, unless and until the notice is withdrawn, be deemed to be a sufficient disclosure of his interest in any contract, proposed contract or other matter relating to that company or other body or to that person which may be the subject of consideration after the date of the notice.

(3) Any disclosure made under sub-paragraph (1) of this paragraph shall be recorded in the minutes of the meeting at which it is made; and any notice given under sub-paragraph (2) thereof shall be recorded in a book to be kept for the purpose.

8.—(1) In the case of an equality of votes at any meeting of a Board, the person who is chairman at that meeting shall have a second or casting vote.

(2) A Board's quorum shall be three or such larger number as they may determine, and subject to the foregoing provisions of this Schedule a Board may determine their own procedure, and the procedure of their committees.

9.—(1) A Board may appoint such officers and servants as the Board may determine.

(2) A Board shall—

- (a) pay to their officers and servants such remuneration and such travelling or other allowances as they may with the approval of the appropriate Minister and the Treasury determine; and
- (b) as to any officers or servants in whose case the Board may determine to do so, pay to or in respect of them such pensions, or provide and maintain for them such pensions schemes, as the Board may with the consent of the appropriate Minister and the Treasury determine.

10. The application of the seal of a Board to any document shall be authenticated by the signature of a member of the Board or of the person for the time being acting as secretary of the Board.

11. A Board's office shall be in its area or where it is conveniently accessible from places in its area.

Section 58.

SCHEDULE 6

THE CENTRAL COUNCIL FOR AGRICULTURAL AND
HORTICULTURAL CO-OPERATION

1. The Council shall be a body corporate with perpetual succession and a common seal.

2.—(1) It shall be within the capacity of the Council as a statutory corporation to do such things and to enter into such transactions as are incidental or conducive to the performance of any of their functions.

(2) Without prejudice to the generality of sub-paragraph (1) above, where in the performance of any of their functions the Council render any services to any person they may make such charges in respect of those services as may be agreed between the Council and that person.

3. The validity of any proceedings of the Council shall not be affected by any vacancy among the members of the Council or by any defect in the appointment or any disqualification of any of the members of the Council.

4.—(1) Subject to the following provisions of this paragraph, a member of the Council and the chairman and deputy chairman shall hold and vacate office as such in accordance with the terms of his appointment, and a previous tenure of any such office shall not affect eligibility for re-appointment.

(2) If the chairman or deputy chairman ceases to be a member of the Council, he shall also cease to be chairman or deputy chairman.

(3) A member of the Council may at any time, by notice in writing addressed to the Ministers, or to any of them, resign his membership, and the chairman or deputy chairman may, by the like notice, resign his office as such.

5.—(1) A member of the Council shall, if he has any direct or indirect personal interest in a proposal made or proposed to be made to the Council in connection with the making of any grant under this Act, disclose the nature of his interest at a meeting of the Council, as soon as possible after the relevant circumstances have come to his knowledge.

(2) Any disclosure so made by a member shall be recorded in the minutes of the Council and that member shall not take part after the disclosure in any decision of the Council with respect to that proposal, but he may, nevertheless, be taken into account for the purpose of constituting a quorum of the Council.

6. In the case of an equality of votes at any meeting of the Council, the person who is chairman at that meeting shall have a second or casting vote.

7. Subject to paragraphs 5 and 6 of this Schedule, the Council may determine their own quorum and procedure, and the quorum and procedure of any committee of the Council.

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8. The Ministers may designate persons to attend on their behalf any meetings of the Council or any committee of the Council, and it shall be the duty of the Council to afford any person so designated reasonable facilities for taking part in the deliberations of the Council or committee, and recording the decisions of the Council or any committee of the Council; but a person so designated shall not be qualified to vote or otherwise count as a member of the Council.

9.—(1) The Council may appoint such officers and servants as the Council may determine.

(2) The Council shall—

(a) pay to their officers and servants such remuneration and such travelling or other allowances as the Council may with the approval of the Ministers and of the Treasury determine, and

(b) as to any officers or servants in whose case the Council may determine to do so, pay to or in respect of them such pensions, or provide and maintain for them such pension schemes, as the Council may with the approval of the Ministers and of the Treasury determine.

10. The application of the seal of the Council shall be authenticated by the signatures of two members of the Council and of the chief officer of the Council or some other person authorised by the Council to do so in his place.

SCHEDULE 7

Section 75.

REPEALS

Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 73.	The Hill Farming Act 1946.	In section 13(2) the words from "and, for the purposes" to the end of the subsection.
14 Geo. 6. c. 36.	The Diseases of Animals Act 1950.	Section 46.
15 & 16 Geo. 6. & 1 Eliz. 2. c. 62.	The Agriculture (Calf Subsidies) Act 1952.	In section 1(1)(a) the words "within the period specified in the scheme." The word "and" at the end of section 1(1)(b) and section 1(1)(c). In section 1(4)(c) the words from "and in the case" to the end of the paragraph. Sections 2 and 3. In section 4(1) the words "or order under section two thereof" and the words "or order", and in section 4(2) the words from "or any limit" to "of this Act" and the words "or order".

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Chapter	Short Title	Extent of Repeal
5 & 6 Eliz. 2. c. 20.	The House of Commons Disqualification Act 1957.	In Part II of Schedule 1, the words "The Pig Industry Development Authority".
5 & 6 Eliz. 2. c. 57.	The Agriculture Act 1957.	Part II. Part III. Section 34. Schedules 2 and 3.
7 & 8 Eliz. 2. c. 2.	The Agricultural Mortgage Corporation Act 1958.	Section 1(a).
8 & 9 Eliz. 2. c. 22.	The Horticulture Act 1960.	Section 1(2) and in section 1(5) the words "or (2)". Section 4.
1963 c. 11.	The Agriculture (Miscellaneous Provisions) Act 1963.	Sections 2 and 3. Sections 6 and 7. In section 9(1) the words from "or for the formation" to the end of the subsection.
1964 c. 28.	The Agriculture and Horticulture Act 1964.	Sections 4, 5 and 6. Section 9(2)(3).

The repeals of the Agriculture (Calf Subsidies) Act 1952 take effect on the date mentioned in section 11(6) of this Act.

The repeals of section 12 in Part II of the Agriculture Act 1957 and the other provisions of that Act so far as they relate to section 12 do not have effect as respects improvements proposed in an application made before the passing of this Act or as respects improvements proposed in an application for which the appropriate Minister gives a direction under section 30(8) of this Act.

The repeals of sections 16 and 17 in Part II of the Agriculture Act 1957 do not affect grant in respect of a transaction proposed in an application made under the said section 16 before the coming into force of the first scheme made under section 26 of this Act.

The repeals of Part III, section 34 and Schedule 3 of the Agriculture Act 1957, and in the House of Commons Disqualification Act 1957, take effect on the coming into force of an order under this Act dissolving the Pig Industry Development Authority.

The repeals of the Horticulture Act 1960, of sections 6, 7 and 9 of the Agriculture (Miscellaneous Provisions) Act 1963 and of sections 4, 5 and 6 of the Agriculture and Horticulture Act 1964 take effect in accordance with any order made under section 61(8) of this Act.